

In the Matter Of:
IN RE SPECIAL 301 HEARING

HEARING
February 18, 2026



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2026 SPECIAL 301 PUBLIC HEARING

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WEDNESDAY
FEBRUARY 18, 2026

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The Public Hearing convened in Rooms 1
and 2, 1724 F Street NW, Washington, D.C., at
10:00 a.m., Daniel Lee, Chair, presiding.

PRESENT

DANIEL LEE, USTR, Chair
CLAIRE AVERY-PAGE, USTR
TRACY CARSON, Department of Health and Human
Services
WON CHANG, Treasury Department
DAVID GERK, U.S. Patent and Trademark Office
WILL L'ESTRANGE, Department of Agriculture
EMILY LANZA, U.S. Copyright Office
CHRISTOPHER MERRIAM, Department of Justice
STEVEN MITCHELL, Department of Commerce
ALAINA VAN HORN, Department of Homeland Security

WITNESSES PRESENT

DONTCHO BARBALOV, Government of Bulgaria
BRIAN SCARPELLI, ACT | The App Association
CAROLINE PALMER, Computer and Communications
Industry Association
SHAWNA MORRIS, Consortium for Common Food Names
JAMIE SIMPSON, Council for Innovation Promotion
THOMAS CROCKETT, Footwear Distributors and
Retailers of America
KEVIN ROSENBAUM, International Intellectual
Property Alliance
BRIAN POMPER, Innovation Alliance
THOMAS VALENTE, Intellectual Property Owners

1 Association
2 ERNEST KAWKA, Pharmaceutical Research and
3 Manufacturers of America
4 PETER MAYBARDUK, Public Citizen
5 KELLY ANDERSON, U.S. Chamber of Commerce, Global
6 Innovation Policy Center
7 TARAS SAULIAK, Government of Ukraine
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1 P-R-O-C-E-E-D-I-N-G-S

2 10:00 a.m.

3 CHAIR LEE: All right. Good morning,
4 everyone. I would like to call this hearing to
5 order. My name is Daniel Lee. I am the
6 Assistant United States Trade Representative for
7 Innovation and Intellectual Property.

8 I would like to welcome everyone to the
9 public hearing for the annual Special 301
10 Review. The Special 301 Review is a statutorily
11 mandated exercise.

12 We undertake each year to develop an
13 overall strategy to ensure adequate and
14 effective intellectual property rights
15 protection, and equitable market access in
16 foreign countries for United States persons that
17 rely on protection of intellectual property
18 rights, such as copyright and related rights,
19 trademarks, patents, and trade secrets.

20 Ensuring that U.S. owners of
21 intellectual property, or IP, have a full and
22 fair opportunity to compete around the globe is
23 one of our trade priorities. And this is the
24 38th annual Special 301 Review, and the 14th
25 public hearing that USTR has hosted in

1 connection with the review.

2 I would like to note for the record
3 that today is Wednesday, February 18th, 2026,
4 and that this hearing is taking place at the
5 Office of the United States Trade
6 Representative, or USTR. We will make a
7 transcript of today's hearing available to the
8 public on USTR's website at ustr.gov.

9 Today's hearing is scheduled to go
10 until approximately 2:40 p.m., and we will break
11 for one hour and 30 minutes from 11:30 to 1:00.
12 We ask for everyone's cooperation with keeping
13 the hearing on track.

14 At this point I would like to invite
15 colleagues on the hearing panel, all of whom
16 represent United States Government Agencies that
17 serve on the Special 301 sub-committee to
18 introduce themselves.

19 MS. AVERY-PAGE: Thank you. Good
20 morning, everyone. My name is Claire Avery-
21 Page. I am a Director of Innovation and
22 Intellectual Property here at USTR.

23 MR. GERK: Good morning. David Gerk.
24 I'm the Acting Deputy Chief Policy Officer in
25 the Office of Policy and International Affairs

1 at the United States Patent and Trademark
2 Office.

3 MR. MERRIAM: Good morning.
4 Christopher Merriam. I'm the Acting Deputy
5 Chief for Intellectual Property at the Computer
6 Crime and Intellectual Property Section, United
7 States Department of Justice.

8 MS. VAN HORN: Alaina Van Horn. I'm
9 Chief of the IP Enforcement Branch at U.S.
10 Customs and Border Protection. And I'm here
11 representing the department, the two main
12 agencies that have equities in today's hearing
13 is Customs and Border Protection and Homeland
14 Security Investigations.

15 MR. MITCHELL: Good morning. I'm
16 Stevan Mitchell. I direct the Office of
17 Standards and Intellectual Property for the
18 International Trade Administration, a Bureau of
19 the Department of Commerce.

20 MS. LANZA: Good morning. I'm Emily
21 Lanza. I am Senior Counsel for Policy and
22 International Affairs at the U.S. Copyright
23 Office.

24 MR. CHANG: Hi, good morning. Won
25 Chang, Department of Treasury. I'm an

1 International Economist in the Office of
2 International Trade and Investment Policy.

3 Thank you.

4 MS. CARSON: Hi, good morning. My name
5 is Tracy Carson. I'm a Senior Health Advisor at
6 the Department of Health and Human Services in
7 the Office of Global Affairs. Good morning.

8 CHAIR LEE: I would also like to note
9 that we do have one colleague who is running
10 late, and who will join the panel when he gets
11 here.

12 The person is Will L'Estrange who is a
13 Senior Trade Advisor at the U.S. Department of
14 Agriculture. So, he'll join at the end when he
15 comes, and we'll be also asking some questions.

16 All right. To continue the Special 301
17 Subcommittee of the Trade Policy Staff Committee
18 which is comprised of the agencies you've just
19 heard from and chaired by USTR conducts the
20 annual Special 301 Review each year.

21 Stakeholder contributions and the
22 contributions of Washington based agencies, and
23 our embassy based personnel all around the world
24 are critical to this review process. The
25 subcommittee is currently in the information

1 gathering stage. On behalf of the agencies
2 here, we thank you for the views, insights,
3 opinions, and factual information you will share
4 with us today.

5 The schedule of today's hearing is
6 comprised of interested parties from foreign
7 governments, civil society, and the private
8 sector who responded to USTR's notice in the
9 Federal Register published on December 11th,
10 2025 and voluntarily requested the opportunity
11 to appear at this public hearing.

12 As a reminder, the purpose of today's
13 hearing is to provide the Special 301
14 subcommittee with additional information that we
15 can use in deliberations that will lead to the
16 publication of the 2026 Special 301 report to
17 Congress on or about April 30, 2026.

18 This year we have received public
19 filings that have addressed over 75 countries,
20 and many country specific IP protection
21 enforcement issues that may negatively affect
22 our bilateral trading relationships. Those
23 filings are available to the public at
24 www.regulations.gov. It is under Docket number
25 USTR-2025-0243.

1 The Special 301 report is the result of
2 a congressionally mandated annual review of the
3 State of Intellectual Property Rights Protection
4 and Enforcement, and trading partners around the
5 world, which the Office of the United States
6 Trade Representative conducts pursuant to
7 Section 182 of the Trade Act of 1974 as amended
8 by the Omnibus Trade and Competitiveness Act of
9 1988, and the Uruguay Round Agreements Act. The
10 provisions of Section 182 are commonly reviewed
11 to as the Special 301 provisions of the Trade
12 Act, hence the Special 301 report.

13 Specifically, Section 182 of the Trade
14 Act requires that the United States Trade
15 Representative identify countries that deny
16 adequate and effective protection of
17 intellectual property rights or deny fair and
18 equitable market access to U.S. persons who rely
19 on intellectual property protection.

20 The statute requires USTR to determine
21 which, if any countries should be identified as
22 priority foreign countries. Acts, policies, or
23 practices that are the basis of a country's
24 identification as a priority foreign country can
25 be subject to the procedures set out in Sections

1 301 through 308 of the Trade Act.

2 In addition to the statutorily defined
3 priority foreign country designation, USTR
4 created the Priority Watch List and Watch List
5 categories to assist the administration in
6 pursuing the goals of the Special 301
7 provisions. USTR is also charged with
8 developing Priority Watch List action plans when
9 a country has been on the Priority Watch List
10 without change for at least one year.

11 So, the format of today's hearing will
12 be as follows. Each party will be allotted ten
13 minutes. Each person will start with five
14 minutes of a prepared statement, leaving five
15 minutes for panel questions.

16 However, we will remain flexible within
17 the ten minute period, making adjustments as
18 needed. We will be watching the clock and will
19 interrupt with a time cue when one minute
20 remains from the allotted five minutes of
21 prepared statements.

22 The panel will hold its questions until
23 the presenter concludes his or her statement.
24 Please keep in mind the purpose of this hearing.
25 That is to provide information that the

1 committee can use in satisfying the charge of
2 the Special 301 statute when conveying your
3 testimony and responding to any questions we may
4 ask.

5 So, without further delay, I would like
6 to invite the Government of Bulgaria to start us
7 off. Welcome. Please introduce yourself and
8 begin your testimony.

9 MR. BARBALOV: Distinguished members of
10 the subcommittee, good morning and thank you for
11 this opportunity. My name is Dontcho Barbalov,
12 Deputy Minister, Ministry of Economy and
13 Industry of Bulgaria.

14 With me today are the President of the
15 Patent Office, and representatives of the
16 Supreme Prosecutor's Office, the State Agency
17 for National Security, the Ministry of Interior
18 Cybercrime Unit.

19 I'm honored to present Bulgaria's
20 sustained progress and concrete results in
21 strengthening of intellectual property
22 protection and enforcement. Bulgaria is
23 committed to ensure effective IP enforcement,
24 and over the past year has taken decisive,
25 systemic, and drastic actions to combat online

1 piracy.

2 Most importantly, a landmark
3 enforcement operation was undertaken. Through
4 the efforts of joint inter-agency taskforce
5 under the explicit provision of the Prosecutor's
6 Office, International Investigative Service, the
7 Bulgarian authorities dismantled criminal groups
8 operating the three largest foreign platforms in
9 Bulgaria and the region.

10 These platforms provided unauthorized
11 access to copyrighted content, and generated
12 tens of millions of visits annually. Their
13 activity caused significant harm to right
14 holders.

15 The operation resulted in permanent
16 shutdown of the platforms, seizer of servers,
17 domains, and digital evidence, tracking of
18 illegal financial flows, and criminal
19 prosecution of the principle operators.

20 This was not a temporary disruption.
21 It was a permanent dismantling of major piracy
22 infrastructure. The operation demonstrates
23 Bulgaria's capability, resolve in commitment to
24 deliver a meaningful enforcement outcome.

25 Several partner U.S. Agencies, the

1 Department of Justice, Homeland Security
2 Investigations, and the Department of State, as
3 well as Europol contributed to the successful
4 operation. We are deeply grateful to them.
5 This partnership is essential and highly valued.

6 We have also strengthened our
7 institutional framework to ensure
8 sustainability. A specialized cybercrime sector
9 was established within the Sofia City
10 Prosecutor's Office and cooperates closely with
11 the cybercrime unit of the National
12 Investigative Service to ensure dedicated
13 expertise in long term enforcement capacity.

14 The Sofia City Prosecutor's Office
15 specialized prosecutors have been assigned to
16 intellectual property cases. This specialized
17 structure for combating organized crime within
18 the Ministry of Interior stepped up to digital
19 enforcement, shutting down three websites and
20 removing illegal online content.

21 Custom's authorities have intercepted
22 large quantities of counterfeit goods. The
23 Bulgarian Patent Office and the Prosecutor's
24 Office signed a memorandum of cooperation on the
25 development of best practices for legal

1 protection of industrial property, addressing
2 criminal infringement challenges, and an
3 enhancement of expert capacity.

4 Leaders with these improvements are
5 also advancing. Amendments have been prepared
6 to strengthen the enforcement including
7 effective tools to prevent access to infringing
8 websites.

9 Trademark protection is also being
10 modernized to address online violations. The
11 legal amendments are on second and final reading
12 in the Bulgarian Parliament.

13 The Intellectual Property Protection
14 Council established this consultative and
15 coordinating body to the Council of Ministers to
16 resume this activity. These reforms further
17 strengthen our enforcement system.

18 Equally important, Bulgaria has
19 invested in prevention and public awareness.
20 The Patent Office has been particularly active
21 in organizing events to upscale businesses,
22 consumers and authorities. Attention is also
23 given to making available sufficient legal
24 alternatives.

25 Distinguished members of the

1 subcommittee, the prevention and prosecution of
2 IP related crimes is a substantial -- is a
3 sustained national priority at the highest
4 institutional level. Bulgaria has delivered
5 concrete enforcement results, structural
6 reforms, and long term institutional capacity.

7 We remain fully committed to continued
8 cooperation with the United States, and to
9 maintain the highest standards of intellectual
10 property protection. We respectfully hope that
11 Bulgaria's progress will be recognized, and that
12 the country will be removed from the Special
13 Priority Watch list. Thank you for your
14 attention.

15 CHAIR LEE: Thank you very much. We'll
16 turn now to questions. And the first question
17 will come from our Department of Justice.

18 MR. MERRIAM: When I reached the
19 microphone. So, last year when we were here, we
20 pressed you about enforcement activities. This
21 year we want to congratulate you on a very
22 comprehensive action to take down those three
23 large platforms, five total sites, in a
24 coordinated international effort.

25 Particularly want to congratulate the

1 efforts that I've learned about from my DOJ
2 colleagues to disrupt the financial flows and to
3 make a long term effort to keep those sites
4 down. So, work well done.

5 You noted in your testimony that there
6 was a specialized unit in Sofia that will focus
7 on this type of crime. Are there specific plans
8 to take further actions, and can you describe
9 those for the panel?

10 MR. BARBALOV: Thank you for the
11 question. This specialized unit is from the
12 Prosecutor's office. And the prosecutor's are
13 working to establish a similar structure in
14 Varna, which is the second biggest city in
15 Bulgaria.

16 And together with the other enforcement
17 agencies, they're monitoring the -- how do you
18 say, the arrivals of similar sites. And now
19 when we have the pattern and the model how to
20 address this issue, they can very easily stop
21 them at an early stage.

22 Because what happened with these
23 particular three sites which we -- I will talk
24 about, was practically no strong reaction for a
25 very long period of time. Now the system is in

1 place. The people are in place. And the
2 statutes are in place to stop such activities at
3 an early stage before they become big and create
4 real problems to copyright holders.

5 MR. MERRIAM: Thank you.

6 CHAIR LEE: All right. The next
7 question is from the U.S. Copyright Office.

8 MS. LANZA: Good morning. On Page 5 of
9 your written submission you mentioned draft
10 legislative amendments that would, quote, go
11 special laws governing registration or
12 categorization regimes for commercial and tour
13 sites where protected works are typically used.
14 Can you please explain more about these regimes
15 and what the amendments would accomplish?

16 MR. BARBALOV: This is work which is
17 organized by Ministry of Culture. We're working
18 on amendments of the respective legislation.
19 And it's part of the work of the Council which I
20 mentioned in my testimony, which resumed its
21 activity.

22 We've formed the subcommittee which
23 will -- working to this legislation to make sure
24 that the legislation is strong and protects the
25 right. But this law is still not ready, so I

1 cannot go into further details.

2 Once ready though, we will be adopting
3 fast track because of what the other priority
4 changes which we are want to making, protecting
5 intellectual property in Bulgaria.

6 CHAIR LEE: Thank you. And one more
7 question comes from USTR.

8 MS. AVERY-PAGE: Thank you. Your
9 submission notes the establishment of a working
10 group tasked with the coordination of Bulgarian
11 institutions in addressing recommendations made
12 in the context of the Special 301 report and the
13 OED ascension review.

14 We understand that the first meeting of
15 this working group took place last week. Do you
16 have any additional feedback from that meeting
17 that you can share with us?

18 MR. BARBALOV: Thank you. This is the
19 working group which is a subgroup of a bigger
20 coordinating effort. The effort met in January.
21 The working group met last week. And they
22 discussed in more details the division of
23 responsibilities because there are different
24 agencies and different institutions involved,
25 and each one has to develop the issues which are

1 closely related to its priorities. So the
2 outcome was better coordination and active work.

3 CHAIR LEE: All right. Thank you for
4 your testimony.

5 All right. Next on the agenda is ACT,
6 The App Association. So, please step up and
7 introduce yourself. Please state your name and
8 organization for the record.

9 MR. SCARPELLI: Thank you. Brian
10 Scarpelli with ACT The App Association. Good to
11 see you all.

12 Ready? All right. Again, my name is
13 Brian Scarpelli. I'm Senior Global Policy
14 Counsel with ACT The App Association.

15 And on behalf of ACT, I'd like to thank
16 you all for this opportunity to share our views
17 with USTR on countries that deny adequate and
18 effective protection of IP rights or deny fair
19 market access to U.S. persons who rely on IP
20 protection.

21 Just a little bit about our org. We're
22 a policy trade association representing the
23 small business technology developer community.
24 Our members are entrepreneurs, innovators,
25 independent developers within the global

1 ecosystem that engage in verticals across every
2 industry, consumer and enterprise.

3 So, we work with and for our members to
4 promote a policy environment that rewards and
5 inspires innovation while providing resources
6 that help them raise capital, create jobs, and
7 continue to build incredible technology.

8 The value of the ecosystem that our
9 community represents, we estimate it to be
10 approximately 1.8 trillion dollars annual, and
11 responsible for 6.1 million American jobs.

12 While serving as a key driver of the global 8
13 trillion dollar internet of things revolution.

14 So, the global digital economy holds
15 great promise for small technology innovator
16 members of ours. They also face an array of
17 trade barriers. And we've long engaged with
18 USTR and other parts of the U.S. Government on
19 these.

20 They take the form of laws,
21 regulations, policies, sometimes just informal
22 practices that aim to you know, protect domestic
23 business services from foreign competition,
24 artificially stimulate exports or just fail to
25 provide adequate or effective protection of IP.

1 And so these barriers have a lot of
2 different forms, but they all have the same net
3 effect: impeding U.S. exports and investment at
4 the expense of American innovation and job
5 creation.

6 IP infringement presents a major threat
7 to the success of ACT's members, their
8 customers, and the work force that supports the
9 creation and growth of digital products and
10 services. Each kind of intellectual property
11 right, copyright, trade mark, patent, and trade
12 secret represent distinct utilities upon which
13 ACT members depend.

14 Other relevant barriers that I thought
15 I'd mention briefly include requirements to
16 provide source code for market entry, and some
17 governments have proposed or implemented those
18 policies that make legal market entry contingent
19 upon the transfer or inspection of proprietary
20 source code.

21 Generally, these IP violations lead to
22 customer data loss, interruption of service,
23 revenue loss, and reputational damage. For our
24 community, any of these alone is a potential end
25 of life occurrence because a small technology

1 developer has relatively limited resources and
2 very often cannot distribute risk across
3 numerous product lines or streams.

4 So, in our testimony here today, we
5 wanted to emphasize a particularly troubling
6 practice abroad in the patent space.
7 Specifically in the area of patents that have
8 been voluntarily committed to be licensed on
9 fair, reasonable, and nondiscriminatory or FRAND
10 terms.

11 These commitments are more than just
12 words. They are binding, contractual
13 commitments made in standard setting processes
14 that can be enforced by companies that use the
15 standards in their capacity as a third party
16 beneficiary.

17 By virtue of being essential to the
18 practicing of these standards, the ability to
19 license standard essential patents consistent
20 with that FRAND promise, that voluntary FRAND
21 promise, is vital to competition and in our
22 view, U.S. economic and national security
23 interests.

24 So, specifically we're deeply concerned
25 with the increasing jurisdictional overreach of

1 German courts and similarly the Unified Patent
2 court in the European Union. For years these
3 courts have forced U.S. companies to take global
4 licenses after finding infringement on a single
5 national patent while ignoring claims by the
6 manufacture that the SUP holder has violated its
7 FRAND commitments that it voluntarily made.

8 These courts are now going further and
9 issuing anti-suit injunctions -- thank you, that
10 prohibit defendants from exercising their
11 contractual rights to license on FRAND terms in
12 other jurisdictions. And last year in a case
13 called BSH v. Electrolux the Court of Justice of
14 the European Union has enabled courts in the EU,
15 including in Germany, to exercise jurisdiction
16 over patent infringement claims involving third
17 party patents including U.S. patents.

18 So, we submit that this particular
19 practice which is newer and emerging should
20 alarm the Special 301 committee, and that these
21 developments should be documented and
22 appropriately described as barriers to trade in
23 the 301 report.

24 In contrast, proceedings in the United
25 Kingdom that are based in contract law are

1 adjudications that in our view, do not threaten
2 U.S. patent sovereignty nor implicate TRIPS
3 liability.

4 ACT appreciates the opportunity to
5 provide its views. I hope we can assist you
6 here today in this hearing, and certainly we
7 commit to help USTR in any way we can moving
8 forward. Thank you.

9 CHAIR LEE: Thank you very much. First
10 question we have comes from the International
11 Trade Administration.

12 MR. MITCHELL: Thank you. You had
13 noted in your submission that India has not
14 implemented its obligations under the WIPO
15 Copyright Treaty and the WIPO Performances and
16 Phonograms Treaty, collectively the WIPO
17 Internet Treaties.

18 Which obligations in particular would
19 you highlight as not yet having been
20 implemented?

21 MR. SCARPELLI: Well I can tell you
22 that generally we have some pretty -- we
23 generally find across our membership that, you
24 know, where things are slowly improving it
25 seems. But that there's still a pretty marked

1 lack of confidence in the ability to rely on the
2 system there for enforcement.

3 And in practice, for the members of
4 ours who are leveraging digital platforms, they
5 will rely on the mechanisms for IP disputes and
6 resolution offered through the terms of service
7 of those platforms far more heavily than they
8 will on the Indian system.

9 I do want to you know, I think that
10 this is not ignored by policy makers in India,
11 and I know that they are making efforts to at
12 least examine modernizing their copyright regime
13 including with respect to new and emerging
14 technologies and use cases like AI.

15 And if it's okay, I'd love to follow-up
16 with some further detail.

17 MR. MITCHELL: Sure. Thank you.

18 CHAIR LEE: Okay. The next question
19 comes from the Patent and Trademark Office.

20 MR. GERK: Thank you. And you
21 referenced anti-suit injunctions with respect to
22 Europe in your testimony, but now turning to
23 China, your submission recommends that USTR
24 develop a nuanced position that distinguishes
25 between the legitimate use of anti-suit

1 injunctions and China's coercive use of anti-
2 suit injunctions to control global litigation
3 outcomes.

4 Can you please expand on how China's
5 policies could harm U.S. stakeholders?

6 MR. SCARPELLI: Sure. I think that
7 even just stepping up to a higher level, you
8 know, I do want to acknowledge I think the
9 persistent concern that we've had and have
10 raised for many years about general rule of law
11 frankly, and the reliability and consistency of
12 fairness in Chinese court decisions.

13 And for the same reason I just
14 mentioned in response to Steve's question, I
15 think there's far more reliance on some trusted
16 digital platforms to handle those issues.

17 I think, we do think contracting the
18 U.S. issuance of ASIs, which have been put out
19 before with the Chinese practice. I think it
20 comes down to the standard by which they're
21 issued.

22 I think there's a pretty deep analysis
23 that you know, a U.S. federal judge would go
24 through before they issue an ASI that considers
25 all the equities under the, you know, standards

1 in U.S. law versus the Chinese courts where they
2 appear to be issued rather systematically and
3 far more easily.

4 So, I think it comes down to the
5 implementation maybe rather than the concept.
6 What I think we're concerned about is the
7 blanket categorization of ASIs as totally
8 inappropriate or appropriate. It's one of those
9 unfortunately complex areas where it truly is
10 case by case. But I hope that helps.

11 CHAIR LEE: Thank you. All right. I
12 think we're out of time. So, thank you for your
13 testimony.

14 MR. SCARPELLI: Thank you.

15 CHAIR LEE: Okay. So, next on the
16 agenda is CILFA. But they have notified us in
17 advance that they would not be able to join
18 today. So, let me ask if the representative
19 from the Computer & Communications Industry
20 Association, CCIA is here? Who I do see is
21 here.

22 If you don't mind stepping up, we'll
23 just kind of skip ahead through the agenda. So,
24 please go ahead and introduce yourself. And
25 state your name and organization for the record.

1 And begin your testimony. Thank you.

2 MS. PALMER: Hello. My name is
3 Caroline Palmer, and I'm a Digital Trade Policy
4 Manager at the Computer & Communications
5 Industry Association. Thank you for the
6 opportunity to present CCIA's views on the 2026
7 Special 301 report.

8 CCIA represents leading U.S. technology
9 and communications companies that are both
10 creators and users of intellectual property, as
11 well as major exporters of digital services.

12 Today digital services exports are one
13 of America's greatest economic strengths.
14 However, these exports are increasingly facing
15 discriminatory IP-related market access areas
16 abroad. These barriers undermine innovation,
17 distort competition, and disproportionately
18 target U.S. firms.

19 Today I would like to highlight two
20 overarching concerns reflected in our written
21 submission. First, the growing use of IP
22 frameworks to impose revenue extraction mandates
23 on U.S. digital services. These include
24 ancillary copyright levies, mandatory news
25 bargaining codes, and local content investment

1 mandates that force U.S. firms to subsidize
2 domestic industries as a condition of operating
3 in foreign markets.

4 Second, the emergence of restrictive AI
5 and data access regulations including compulsory
6 licensing schemes, and training data disclosure
7 requirements that threaten the development and
8 global competitiveness of the next generation of
9 U.S. technology exports.

10 First, CCIA has long warned about
11 ancillary copyright regimes that create new
12 payment obligations for U.S. digital services
13 simply for linking to or displaying lawfully
14 available content.

15 For example, France and the Czech
16 Republic have adopted mandatory frameworks
17 requiring designated platforms to negotiate and
18 pay publishers for displaying news snippets
19 backed by regulatory enforcement and financial
20 penalties.

21 These regimes depart from international
22 copyright norms, and conflict with obligations
23 under the Berne Convention and TRIPS. In
24 practice, they operate as discriminatory
25 conditions on market access.

1 Closely related are mandatory news
2 bargaining codes which Jamieson Greer himself
3 called attention to in a congressional testimony
4 last December. These mandates require U.S.
5 digital services to make payments to domestic
6 publishers under threat of arbitration or
7 regulatory penalties.

8 Countries such as Australia, Canada,
9 and Indonesia have adopted these frameworks
10 which condition market access on payment
11 obligations for designated platforms, primarily
12 U.S. companies.

13 Australia has gone even further by
14 introducing a retroactive digital services tax
15 to pressure compliance with its bargaining
16 regime, while Canada's Online News Act has been
17 used to extract payments from certain U.S. firms
18 while exempting other services that provide
19 comparable access to news content. A third
20 category involves audio/visual content quotas
21 and domestic investment requirements imposed on
22 streaming services.

23 For example, Australia's streaming
24 content law requires subscription video services
25 to devote fixed percentages of revenue or

1 expenditures to domestic production.

2 Similarly, Canada's Online Streaming
3 Act and related provincial measures impose
4 levies, discoverability mandates, and other
5 obligations to disproportionately burden foreign
6 services while exempting domestic providers.

7 These measures interfere with copyright
8 holders control over content distribution,
9 impose nationality based investment
10 requirements, and conflict with core trade
11 commitments that prohibit local preferences.

12 Foreign governments are also adopting
13 restrictive AI and data access regulations that
14 threaten a core driver of digital trade. AI
15 development depends on balanced copyright
16 frameworks including fair use, and text and data
17 mining exceptions.

18 Yet jurisdictions like India are
19 proposing compulsory licensing regimes that
20 would require developers to pay for AI training
21 on lawfully accessible data. Australia and
22 Brazil are considering similar measures that
23 impose open-ended licensing obligations.

24 At the same time AI disclosure
25 mandates, as proposed in the EU, risk exposing

1 proprietary training data and model design,
2 threatening intellectual property and trade
3 secrets.

4 If left unaddressed these measures will
5 chill investment, fragment global AI
6 development, and restrict market access for U.S.
7 exporters. Together these mandates function as
8 coercive revenue transfer mechanisms that
9 disproportionately target U.S. exporters,
10 distort competition, and discourage market
11 entry.

12 When intellectual property frameworks
13 are repurposed to impose discriminatory taxes,
14 force payments, or compel disclosure of trade
15 secrets, they stop being legitimate protection
16 and become trade barriers.

17 The Special 301 process is an essential
18 tool for identifying these practices. We urge
19 USTR to use the 2026 report to address
20 discriminatory ancillary copyright regimes,
21 mandatory bargaining codes, local content
22 mandates, and restrictive AI related copyright
23 and data rules that undermine fair and equitable
24 market access for U.S. digital services.

25 Thank you for the opportunity to

1 present CCIA's views. We look forward to
2 continuing to work with USTR to promote open,
3 innovation friendly, and non-discriminatory
4 digital markets worldwide. Thank you.

5 CHAIR LEE: Thank you. The first
6 question comes from USTR.

7 MS. AVERY-PAGE: Thank you. So, you
8 highlight in your submission, the working paper
9 on generative AI and copyright published by
10 India's Department for Promotion of Industry and
11 Internal Trade, or DPIIT, in December.

12 What measures could DPIIT take to
13 address stakeholder concerns?

14 MS. PALMER: Yeah. Thank you for the
15 question. India's working paper on AI poses a
16 number of issues for our members, including
17 royalties tied to global revenue, which
18 essentially functions like a digital tax on AI
19 developers, regardless of actual data use.

20 So, essentially we see it as sort of
21 similar to a DST in that way. It's mandatory,
22 and there's a potential retroactive application,
23 that could burden our members we think.

24 The consultation was recently
25 completed. It's not yet enacted, so there is

1 still a chance for USTR to push back on this
2 issue. Especially given the AI summit currently
3 ongoing in India.

4 Right now we do know this is a priority
5 for the country, and it's a priority for our
6 members to ensure that trade secrets and their
7 intellectual property is protected in that way.

8 CHAIR LEE: Thank you. The next
9 question comes from DOJ.

10 MR. MERRIAM: In China, you recommended
11 that USTR again, highlight policies pursuant to
12 the Cybersecurity Act in the upcoming Special
13 301 report. Do you have any specific updates on
14 the affect on stakeholders, the implementation
15 since 2022 that would be relevant to this cycle
16 in Special 301?

17 MS. PALMER: Thank you for your
18 question. While I don't have that specific
19 information in front of me, I'm not currently
20 aware of any developments in that region. But
21 I'm happy to supplement our comments with more
22 detail.

23 I do know, you know, China remains a
24 significant concern. Its regulatory framework
25 can require foreign companies to rely on local

1 partners and comply with data and disclosure
2 requirements that risk exposing proprietary
3 software and trade secrets.

4 These measures affect the ability of
5 U.S. companies to protect and monetize their IP.
6 And this creates barriers to fair and equitable
7 market access which falls squarely within the
8 scope of the 301 process. So, we definitely
9 urge USTR to continue monitoring this issue, and
10 I'll make to follow up if I have any additional
11 information.

12 MR. MERRIAM: Thank you.

13 CHAIR LEE: Okay. Thank you for your
14 testimony.

15 All right. Next up is the Consortium
16 for Common Food Names. All right. Please state
17 your name and organization for the record and
18 begin your testimony.

19 MS. MORRIS: Good morning. My name is
20 Shawna Morris, and I am the Senior Director for
21 the Consortium for Common Food Names.

22 CCFN represents farmers and food
23 manufacturers dedicated to promoting a common
24 sense approach to geographical indications and
25 common food names. Over the past decade, U.S.

1 dairy and meat producers, cheese makers, wine
2 makers, and other food and beverage producers
3 have faced a growing challenge from the European
4 Union.

5 Through its GI policies, the EU has
6 worked to claim the sole rights to use common
7 food names like parmesan, feta, bologna, and
8 chateau. By asserting exclusive rights over
9 these generic terms, and dozens more, the EU has
10 limited the ability of American producers of
11 cheese, meat, wine, and beer to market and sell
12 their products in key markets both in Europe and
13 beyond, shutting out U.S. producers from using
14 names that consumers have recognized for
15 generations.

16 After years of uphill battles to tackle
17 this non-tariff trade barrier, this past year
18 has marked a real breakthrough. Thanks to the
19 Administration's proactive trade agenda,
20 multiple key markets around the world have now
21 committed to adopting meaningful protections for
22 common food names.

23 These are not symbolic gestures.
24 They're concrete, enforceable commitments that
25 preserve market access and give American

1 exporters certainty. They ensure that common
2 names cannot simply be rebranded as exclusive
3 European property and quietly removed from store
4 shelves.

5 The agreements on reciprocal trade with
6 countries like Taiwan, Malaysia, Guatemala, and
7 others has set a new gold standard. These
8 agreements include strong transparency and due
9 process requirements for reviewing and handling
10 GI applications. And equally importantly they
11 include clear lists of terms that must remain
12 available for common use by U.S. exporters and
13 their customers.

14 These are concrete, enforceable
15 commitments that preserve market access and give
16 American exporters certainty. These gains are
17 especially significant as the EU is advancing
18 toward implementation of agreements like the EU-
19 Mercosur deal which threaten to grant the EU
20 exclusive rights to certain names and shut U.S.
21 producers out of those markets.

22 By securing protections in the western
23 hemisphere, the Administration has taken
24 important steps to defend long standing U.S.
25 trade interests close to home. Progress in

1 Indonesia, Thailand, and elsewhere in Asia
2 further highlight the importance of acting
3 early.

4 For instance, Indonesia is committed to
5 establishing a transparent and fair process for
6 evaluating GIs, a step that is vital in the wake
7 of the EU-Indonesia FTA's conclusion this past
8 fall. And likewise, Thailand.

9 And U.S. negotiations on these issues
10 continue while at the same time Thailand
11 advances domestic GI regulations, and its own
12 FTA talks with the EU.

13 Beyond ongoing efforts in the ART
14 realms, we also greatly value the
15 Administration's continued parallel engagement
16 in educational programs aimed at trading
17 partners' policy makers and IP officials on this
18 topic, and on helping to shape the development
19 of countries' GI laws and regulations.

20 Taken together, the accomplishments of
21 2025 demonstrate meaningful strides in slowing a
22 very troubling trend of creeping EU
23 monopolization of common food names. They send
24 a clear message that the United States will not
25 stand by while trading partners are pressured

1 into adopting policies that undermine fair
2 competition.

3 But the job isn't finished. We must
4 build on the foundation laid in 2025,
5 replicating those gold standard protections,
6 insisting on transparency and fairness and using
7 every available tool to defend the use of common
8 food names.

9 And that includes leveraging the 2026
10 USMCA joint review to ensure that Mexico
11 protects access for common name products to its
12 market and fully implements its USMCA
13 commitments pertaining to the protection of
14 common cheese names and clearly defining the
15 rights of prior users of generic terms.

16 This is about more than just labels.
17 It's about American jobs, rural communities, and
18 the principle that common food names belong in
19 the public domain, not in the hands of European
20 special interests seeking to monopolize them.

21 The progress made in 2025 shows what is
22 possible when the U.S. negotiates with clarity,
23 resolve, and a commitment to fairness. We must
24 continue that direction to ensure that common
25 names remain available to the American producers

1 who have built their businesses around them, and
2 the consumers around the world that have loved
3 these products for generations.

4 Thank you. I look forward to your
5 questions.

6 CHAIR LEE: Thank you. The first
7 question is from the U.S. Department of
8 Agriculture.

9 MR. L'ESTRANGE: High. Good morning.
10 Apologies for my late arrival. My name is Will
11 L'Estrange. I'm the Senior Trade Advisor for
12 Europe, Africa and the Middle East in the
13 Foreign Agricultural Service.

14 Thank you for your testimony. You
15 mentioned this at the end of your comments. But
16 in your public comments on Mexico, CCFN notes
17 that you were deeply disappointed by the Mexican
18 Government's decision to acquiesce to EU demands
19 by relinquishing protections for several widely
20 used common terms in the context of negotiations
21 to modernize the EU-Mexico global agreement.

22 As USTR prepares to lead the USMCA
23 joint review, can you elaborate further on what
24 actions you think the United States Government
25 should undertake to address your outstanding

1 concerns?

2 MS. MORRIS: Yeah. Thank you for that
3 question. First of all, note the importance of
4 Mexico. They are our best trading partner.

5 Over a quarter of dairy exports for
6 instance go there as well as it being the number
7 one market for a lot of other U.S. agriculture
8 sectors. So our relationship with them is quite
9 positive, but extremely important, which makes
10 ironing this issue out absolutely vital.

11 I'd say, we see it as the fundamental
12 importance is ensuring that those trade flows
13 that occur today can continue to occur moving
14 forward regardless of what happens in terms of
15 Mexico's implementation of its FTA with the EU.

16 And fortunately, the U.S. has already
17 secured with Mexico a number of commitments
18 through the USMCA process that would help to
19 address that. The intellectual property chapter
20 included a number of due process protections,
21 not all of which are being consistently followed
22 by Mexico presently, particularly when it comes
23 to consideration of common names and
24 geographical indication applications.

25 And then also the important side

1 letters that were negotiated as part of that
2 too. So ensuring that those are firmly embedded
3 in Mexican regulations so that IP examiners have
4 clear guidance on how to use them I think is
5 what's going to be needed. Thank you.

6 MR. L'ESTRANGE: Thank you.

7 CHAIR LEE: Okay. The next question
8 comes from the Patent and Trademark Office.

9 MR. GERK: Thank you. You just
10 mentioned the job isn't finished in the GI
11 space. And to that point, CCFN's comments speak
12 at length about the efforts of the European
13 Union to expand global recognition of its
14 geographical indication system, and related
15 quality schemes through both bilateral and
16 multilateral trade negotiations.

17 Can you please provide more perspective
18 on how you feel this Administration can utilize
19 its trade agenda to ensure the EU's aggressive
20 efforts in third-country markets do not lead to
21 restricted market access for U.S. food and
22 agricultural products?

23 MS. MORRIS: Thank you for that
24 question. I'd say what we hope to see moving
25 forward from the Administration honestly is a

1 lot more of the same of what we've seen in the
2 past year.

3 I think this Administration has been
4 very active. I think a number of the
5 departments here on the panel, for their team's
6 work on very effectively and aggressively
7 tackling this issue. And we see the importance
8 of a multi-prong approach here.

9 Certainly the various bi-lateral and
10 reciprocal agreements on trade are sort of the
11 bedrock of that, particularly given the strength
12 of those commitments that have been secured to
13 date and that we hope will be included in the
14 additional ARTs that are in framework, or
15 earlier stages, and have yet to translate into
16 final agreements.

17 But then being complemented by a lot of
18 those other engagements that the
19 Administration's been pursuing for quite some
20 time. So the educational opportunities that PTO
21 organizes typically with IP officials, we see
22 those as an important element of the overall
23 strategy.

24 Likewise engaging bi-laterally where we
25 don't have those ART negotiations going on, but

1 a country is moving forward with GI regulations
2 or consideration of applications to partner with
3 industry for engagement at a government-to-
4 government standpoint through that process too.
5 I think all of that together is what's going to
6 protect those markets for U.S. exporters.
7 Thanks.

8 MR. GERK: Thank you.

9 CHAIR LEE: All right. I think we'll
10 try to squeeze in one more question quickly from
11 the USDA.

12 MR. L'ESTRANGE: Thank you. So CCFN's
13 public comments also highlight trade
14 negotiations between the EU and India. As these
15 talks have recently concluded, do you have any
16 insight on how GIs are treated in this
17 agreement, or how U.S. industry might be
18 affected?

19 MS. MORRIS: Thank you. On the last
20 piece I'd say, our expectation is that barring a
21 commitment that the U.S. would be able to secure
22 with India, restrictions for U.S. exports are
23 quite likely since that is typically the EU's
24 goal in its negotiations.

25 With that said, it's our understanding

1 the GIs between the EU and India are being
2 handled through separate GI negotiations to
3 create a standalone GI agreement versus as
4 folded into the broader FTA as is more typical
5 for the EU agreements. And those remain ongoing
6 is our understanding. Thanks.

7 CHAIR LEE: Thank you very much.

8 MS. MORRIS: Thanks.

9 CHAIR LEE: All right. Next is the
10 Council for Innovation Promotion. Hi. Please
11 state your name and organization for the record
12 and begin your testimony.

13 MS. SIMPSON: Thank you. I'm Jamie
14 Simpson. I'm the Chief Policy Officer and
15 Counsel for C4IP, the Counsel for Innovation
16 Promotion. So first I'd like to thank you
17 Chairman, and members of the Special 301
18 committee for the opportunity to testify today.

19 C4IP is a bipartisan coalition
20 committed to ensuring U.S. innovators receive
21 fair and effective intellectual property
22 protection at home and abroad.

23 IP intensive industries contribute more
24 than 40 percent of U.S. economic output, and
25 support over 62 million jobs. But that success

1 doesn't stop at our borders. It depends on
2 whether U.S. companies can count on clear,
3 enforceable rules when they bring new
4 technologies, medicines, and creative works into
5 foreign markets.

6 Today I want to focus on the countries
7 detailed in our full submission where those
8 rules continue to fall short, and where a
9 country's inclusion on Special 301's list would
10 set the groundwork for further U.S. engagement
11 and hopeful improvement.

12 First, China should remain on the
13 Priority Watch List due to broad and structural
14 IP abuses. In the biopharmaceutical space China
15 has narrowed its definition of what counts as a
16 new drug to medicines first approved in China.

17 That puts U.S. innovators at a
18 disadvantage and distorts decisions about where
19 companies launch new treatments. China's patent
20 linkage system also does not give innovators
21 enough time to resolve patent disputes before
22 generics or biosimilars enter the market.

23 Further, Chinese courts indicated a
24 willingness to set global licensing rates for
25 standard-essential patents, or SEPs, without the

1 patent holder's consent. That practice would
2 effectively allow others to use U.S. technology
3 at a discount through the Chinese court system
4 acting as an implementer of Chinese domestic
5 industrial policy.

6 India should also remain on the
7 Priority Watch List. India's patentability
8 standard under Section 3(d) continues to limit
9 protection for incremental pharmaceutical
10 innovation.

11 India also lacks a meaningful
12 regulatory data protection framework, meaning
13 U.S. companies shoulder more of the global cost
14 of drug development. Patent enforcement
15 concerns, and patent litigation delays continue
16 to persist there too.

17 Mexico likewise belongs on the Priority
18 Watch List. Despite clear commitments under the
19 USMCA, Mexico lacks an effective patent linkage
20 system, and its system does not provide for
21 effective notice to patent holders before
22 generics or biosimilars enter the marketplace.

23 Regulatory data protection also remains
24 unclear and unreliable, leaving innovators
25 exposed when they bring new medicines to the

1 Mexican market.

2 C4IP recommends that Brazil be elevated
3 to the Priority Watch List. Particularly
4 concerning are its patent prosecution delays,
5 and the lack of a meaningful way to recover
6 patent terms due to administrative backlogs.

7 Canada should remain on the Watch List.

8 Canada's patent term extension and adjustment
9 systems fall short of USMCA obligations.

10 Effective price controls imposed through the
11 Patented Medicines Price Review Board weaken
12 patent value, hurting innovation and American
13 innovators.

14 Canada's Online Streaming Act also
15 raises serious concerns with its requirement
16 that U.S. streaming services subsidize domestic
17 content as a condition of market access.

18 The United Kingdom should be placed on
19 the Watch List due to recent SEPs-related
20 actions from its courts, and indication that
21 further regulation of standard-essential patents
22 may be forthcoming, both of which seem poised to
23 weaken patent rights and hurt innovators.

24 Because many of these reforms are
25 prospective, and the UK remains a close U.S.

1 trading partner, we are hopeful the UK will
2 realign its SEP framework with market-based
3 licensing principles, facilitating removal from
4 the Watch List.

5 Finally, turning to the European Union.
6 Recent reforms to its general pharmaceutical
7 legislation shorten regulatory data protection
8 and tie protections to burdensome launch
9 requirements.

10 The EU has also moved towards broader
11 compulsory licensing authority and policies that
12 undermine market-based licensing of SEPs. The
13 EU plays an outsized role in shaping global IP
14 norms, so these choices will set global
15 precedents. We therefore recommend that the
16 USTR elevate the EU to the Priority Watch List.

17 The Special 301 process is one of the
18 most important tools the United States has to
19 push back against these trends that hurt
20 American innovators operating abroad.

21 C4IP appreciates USTR's engagement and
22 urges the office to use this tool appropriately
23 for the jurisdictions we have identified. Thank
24 you again for the opportunity to testify. And I
25 welcome your questions.

1 CHAIR LEE: Thank you very much. The
2 first question comes from the Treasury
3 Department.

4 MR. CHANG: Hi. Thank you. In your
5 submission you recommend considering the EU for
6 placement on the Priority Watch List noting that
7 recent policy developments in the EU merit
8 heightened scrutiny. Can you elaborate a little
9 more on the developments, recent developments,
10 and address, would it reflect policy proposals
11 under consideration or new policies that have
12 taken affect?

13 MS. SIMPSON: Well it is both. Some of
14 them have already passed, and we're hoping could
15 still be addressed. Those primarily relate to
16 the recently passed general pharmaceutical
17 legislation.

18 And those did introduce a number of
19 very concerning changes that hurt American
20 Innovators. And although that is in place, it's
21 still I think very worthwhile of further bi-
22 lateral negotiations.

23 What is pending, or still more on the
24 table I would say, is the issue of standard-
25 essential patents. There was a regulation that

1 was proposed, and withdrawn, which is now the
2 subject of a lawsuit. So I think in our view
3 it's not clear that it's gone forever.

4 And even setting that aside, there was
5 a recent report that came out that concerned the
6 IP enforcement directive in the EU that also
7 affects patent rights. And kind of overlaps
8 with some areas of SEPs, which could also lead
9 to their weakening. So I would say it's a
10 combination of both.

11 MR. CHANG: Thank you.

12 CHAIR LEE: Okay. The next question
13 comes from USTR.

14 MS. AVERY-PAGE: Thank you. So on
15 Brazil, as you noted, your submission recommends
16 elevating Brazil to the Priority Watch List due
17 to product development partnerships that
18 condition access to the public health market on
19 technology transfer to public or state-backed
20 entities.

21 Can you please expand on whether these
22 partnerships are voluntary or if U.S.
23 stakeholders are subject to pressure to transfer
24 technology?

25 MS. SIMPSON: My understanding is that

1 they're subject to pressure. So it may be
2 voluntary, but you know, it certainly seems like
3 a market barrier if you want access to the
4 Brazilian market. It's not necessarily an
5 option.

6 CHAIR LEE: Okay. And then we have a
7 question from the Department of Health and Human
8 Services.

9 MS. CARSON: Thank you. And you
10 touched a little bit about Canada on your verbal
11 testimony. So let me, I just wanted to follow
12 up.

13 So you've raised concerns about
14 Canada's system for patent term extensions for
15 patent office delays and its system for patent
16 term extensions for marketing approval delays.

17 Could you elaborate on your concerns,
18 including how the two systems interact with each
19 other?

20 MS. SIMPSON: Yes. So the concern
21 first on the patent term adjustment for patent
22 office delays in Canada. The way that that
23 system is structured just makes it very hard for
24 applicants to meaningfully recover term. There
25 are a lot of exceptions.

1 There's a lot of burden on the
2 applicants. So it seems more like a right on
3 paper than a right in practice in contrast to
4 the U.S. system.

5 And then turning to the extension
6 delays relating to regulatory approval. One of
7 the main concerns there is the way that that's
8 structured in conjunction with the adjustments
9 for the patent office delay in that the two run
10 concurrently instead of consecutively as they do
11 in the U.S., which we feel undermines the policy
12 behind giving that time back. It doesn't fully
13 compensate the innovator.

14 CHAIR LEE: Okay. Thank you so much
15 for your testimony.

16 MS. SIMPSON: Thank you.

17 CHAIR LEE: All right. Next is the
18 Footwear Distributors and Retailers of America.
19 Okay. Please state your name and organization
20 for the record and begin your testimony.

21 MR. CROCKETT: Sure. My name is Thomas
22 Crockett. I'm Senior Vice President of
23 Government Relations for FDRA. On behalf of the
24 Footwear Distributors and Retailers of America,
25 thank you for the opportunity to testify today.

1 FDRA is the footwear industry's trade
2 and business association. We represent more
3 than 500 footwear companies and brands across
4 the U.S. This includes the majority of U.S.
5 footwear manufacturers, and over 98 percent of
6 the industry.

7 International trade supports hundreds
8 of thousands of footwear jobs in communities
9 across the U.S. Good paying jobs in design,
10 innovation, materials, sourcing, compliance,
11 logistics, warehousing, marketing, and retail.

12 A strong IP environment in the U.S. and
13 globally is critical to these footwear jobs.
14 Many of our companies sell footwear that reaches
15 consumers in markets around the world. These
16 companies manage supply chains that span the
17 globe, so they understand the importance of
18 protecting IP and innovation outside of the U.S.

19 My testimony today will focus on three
20 key areas. The unintended consequences of
21 tariffs, strengthening IP protection in Mexico,
22 and the current environment in China.

23 First we urge the Administration to
24 employ a more strategic approach to tariff
25 policy. Increasing tariffs on U.S. imports can

1 have the unintended consequence of driving more
2 counterfeit goods into the U.S. market. This is
3 because U.S. companies and their consumers pay
4 the tariffs to the U.S. Government.

5 Footwear tariffs remain the highest of
6 any consumer product category. While the
7 average tariff rate of consumer goods is just
8 over two percent, footwear tariffs average more
9 than 12 percent. For some categories, including
10 many children's shoes, rates often exceed 48
11 percent. And that's not counting the added
12 reciprocal tariff rates.

13 As consumers continue to see prices
14 rise with new tariff increases, they will shift
15 to lower priced alternatives. In difficult
16 economic times, consumers will sacrifice quality
17 for cheaper products that resemble well-known
18 brands. This is an environment where
19 counterfeiters thrive.

20 Legitimate footwear brands must comply
21 with multiple laws and regulations at both the
22 federal and state levels. These companies
23 maintain robust chemical safety programs and
24 undertake time consuming and expensive product
25 testing.

1 U.S. footwear companies must now pay
2 more than five billion dollars a year to the
3 U.S. Government in the form of tariffs.
4 Counterfeiters have the advantage because they
5 operate outside the system. These
6 counterfeiting entities show a disregard for the
7 law when they steal the IP of U.S. brands.

8 Therefore how do we know the products
9 they put into the U.S. market are free of forced
10 labor or harmful chemicals? How do we know
11 these entities have followed the same burdensome
12 importing requirements as those undertaken by
13 legitimate brands?

14 Footwear consistently ranks among the
15 most counterfeited product sold to U.S.
16 consumers. These illicit goods have also
17 achieved such a level of sophistication that it
18 can be nearly impossible for a consumer to
19 distinguish a legitimate good from a fake.

20 Brands face an additional challenge
21 with the growing trend of sales via social media
22 platforms through influencer endorsements.
23 These influencers promote knockoff dupes that
24 resemble a popular brand at a much lower price
25 at a time when consumers face affordability

1 challenges due in part to an increasing tariff
2 burden.

3 In countries like Brazil, which put in
4 place high tariffs to protect the domestic
5 footwear market, counterfeits have surged.
6 These high prices fuel the smuggling of
7 counterfeit goods onto the illegal market.
8 Markets for fake goods operate openly in Brazil
9 and are supplemented by a thriving network of
10 counterfeit goods producers.

11 As you advise the President on tariff
12 policy, we would recommend a more surgical
13 approach that will reduce the burden on U.S.
14 footwear companies and consumers.

15 We'd also like to raise an IP issue
16 that needs to be addressed for this year's USMCA
17 review. IP enforcement challenges persist in
18 Mexico-U.S. trade relations, particularly due to
19 counterfeit goods in physical and online
20 markets. This includes systemic issues with
21 customs authority, lengthy legal proceedings,
22 and limited resources that hamper IP protection.

23 Updating laws in Mexico to provide the
24 National Customs Agency ex officio power to
25 detain, seize, and destroy counterfeit goods

1 without needing prior approval from the Mexican
2 Institute of Industrial Property, or the
3 Attorney General's office would greatly improve
4 order enforcement, especially amid the rise of
5 e-commerce.

6 Under the current law, the Agency's ex
7 officio power is limited to detaining goods, and
8 merely notifying IP rights holders about
9 suspicious products.

10 And finally, we also want to highlight
11 the current IP environment in China. FDRA is
12 hopeful that the Chinese government will over
13 time become increasingly aware of the value,
14 both to Chinese consumers and to the Chinese
15 economy, of vigorously protecting IP. Our
16 members continue to experience challenges with
17 IP protection in China.

18 It's also difficult to foster
19 collaboration with different platforms that are
20 not required by law to work with brands to
21 reduce counterfeits and knockoff goods. China
22 is still the number one source of counterfeit
23 goods imported into the U.S.

24 Within China, local officials often
25 turn a blind eye to counterfeiting activity.

1 We've witnessed a rise in knockoff products made
2 in China that copy iconic product designs and
3 replace or remove famous trademarks.

4 And then as we've highlighted in our
5 testimony before, the legal landscape is also
6 challenging for U.S. brands. One example,
7 because China is a first-to-file jurisdiction, a
8 well-established U.S. brand may discover an
9 unrelated Chinese party has already registered
10 the brand's trademark. And then they must go
11 through a costly buy back process to buy back
12 the right to their own trademark.

13 In conclusion, we appreciate the
14 opportunity to provide feedback today. And
15 happy to answer any questions.

16 CHAIR LEE: Thank you so much. The
17 first question comes from the Department of
18 Homeland Security.

19 MS. VAN HORN: Hello. I have a
20 question about Indonesia, specifically their
21 border enforcement and customs actions. So in
22 your filing you note that there's a number of
23 long standing issues with their recordation
24 system. You know, mainly the local domicile
25 requirement and then the high value of the bond

1 that's required.

2 But in regard to right holders
3 requesting suspension, and that it has to go to
4 the commercial court, you note that it's
5 difficult for brands to have the information
6 that's necessary to get the court to actually
7 issue the suspension order. Do you know
8 specifically what they're requiring that's
9 difficult?

10 MR. CROCKETT: That's something --
11 that's a great question. I need -- I can circle
12 back in our post-hearing submission and provide
13 a more detailed response. I don't know off
14 hand. I know we have companies on the ground
15 that are dealing with that.

16 And so we'd love to explore the
17 challenges. Obviously we have you know, a
18 number of countries -- we focused this year
19 primarily on China and Mexico because of kind of
20 the urgency of both countries addressing that.

21 But footwear, wherever you have
22 footwear-producing countries, Indonesia,
23 Vietnam, and others, they're still areas of
24 concern. But don't have the same heightened
25 concern that we have right now.

1 MS. VAN HORN: Okay. Thank you.

2 CHAIR LEE: All right. Thank you. The
3 next question comes from the Department of
4 Justice.

5 MR. MERRIAM: I want to drill down a
6 little bit on your comments on Mexico.

7 MR. CROCKETT: Okay.

8 MR. MERRIAM: So there has been this
9 long running problem with the lack of ex officio
10 authority. Can you talk about the specific
11 amount of delay that your brands are seeing, and
12 the costs associated with that lack and the
13 delays in the process?

14 MR. CROCKETT: So I know it's lengthy,
15 because there's also multiple avenues. There is
16 the -- there's the Administrative action, and
17 that's helpful if the infringer is a well-
18 established business and they can find the
19 domicile for notification. So that's one
20 process.

21 But then you have to go through a
22 trial, which is also costly for rights holders.
23 There's a criminal option that, our
24 understanding is that's the preferred option.
25 But then that's a separate process that involves

1 the specialized, the FGR, specialized unit for
2 investigating crimes against copyright
3 industrial property, which has faced cutbacks
4 due to austerity programs in Mexico.

5 So I know that's another thing, post-
6 hearing comments I want to get the exact time
7 tables for both processes and try to understand
8 exactly how that's changed in the past few years
9 with budget cuts in Mexico.

10 MR. MERRIAM: Thank you for that
11 answer. That would be helpful for us to know
12 the timelines and also to the extent there have
13 been difficulties in getting criminal
14 prosecutions. Because it is a running concern
15 for this panel.

16 MR. CROCKETT: Great.

17 CHAIR LEE: Okay. Thanks. The last
18 question that we have is from the International
19 Trade Administration.

20 MR. MITCHELL: In your submission,
21 you've highlighted best practices and
22 improvements made in China, Vietnam, and the EU,
23 including policies affecting the sale of goods
24 on e-commerce platforms. Two part question
25 follows. Have your members seen materially

1 positive effects from these best practices? And
2 secondly, how is your organization engaging with
3 platforms themselves to address remaining
4 challenges?

5 MR. CROCKETT: So I think a lot of
6 these changes are relatively new. So we may not
7 have seen -- my understanding is we haven't seen
8 the full effect of these changes yet. I think
9 that's the theme when we're looking at best
10 practices and getting member feedback, platform
11 responsibility globally and in the U.S. is a top
12 concern. I mean we're seeing such a shift to e-
13 commerce here in the U.S., around the world, and
14 making sure that these platforms are held
15 accountable and work with brands. It's easier
16 to do in the U.S. where they have these
17 relationships than perhaps it is in other
18 countries.

19 CHAIR LEE: Thank you so much for your
20 testimony.

21 All right. So I think last up for this
22 morning's session is the Global Data Alliance.
23 Maybe they're not here yet.

24 We are running a little ahead of
25 schedule. So I think we will just pause for a

1 few minutes while we wait for them to arrive.

2 I would ask the panel members just to
3 stick around because we will just continue as
4 soon as the representative arrives. Thank you.

5 (Whereupon, the above-entitled matter
6 went off the record at 11:05 a.m. and resumed at
7 11:20 a.m.)

8 CHAIR LEE: Okay. It is 11:20, and is
9 anyone from the Global Data Alliance here? We
10 will wait two more minutes, and then, if not,
11 then, we will break for lunch.

12 (Whereupon, the above-entitled matter
13 went off the record at 11:20 a.m. and resumed at
14 11:22 a.m.)

15 CHAIR LEE: Okay. It is 11:22. Is
16 there any representative from the Global Data
17 Alliance? Last call? Okay, I believe the
18 Global Data Alliance is a no-show. So, at this
19 point we are finished with our testimonies for
20 the morning. We will be breaking until 1:00
21 p.m. Please take into consideration the time
22 needed to get through security when you plan
23 your break and come back. So, we ll see
24 everyone at 1:00. Thank you.

25 (Whereupon, the above-entitled matter

1 went off the record at 11:22 a.m. and resumed at
2 1:00 p.m.)

3 CHAIR LEE: All right. Good afternoon,
4 everyone. We are back, it s 1:00 and we are
5 going to get started with our afternoon session.
6 First up is the International Intellectual
7 Property Alliance. All right. Please state
8 your name and organization for the record and
9 begin your testimony.

10 MR. ROSENBAUM: Great. Thank you all.
11 I m Kevin Rosenbaum with the International
12 Intellectual Property Alliance, the IIPA. Thank
13 you for the opportunity to present our views in
14 this year s Special 301 hearing. IIPA is a
15 private sector coalition of five trade
16 associations representing the U.S. copyright-
17 based industries, which according to a February
18 2025 study contribute over two trillion dollars
19 to the U.S. economy and provide over 11 and a
20 half million U.S. jobs.

21 Our members are the Association of
22 American Publishers, Entertainment Software
23 Association, Independent Film and Television
24 Alliance, Motion Picture Association, and the
25 Recording Industry Association of America.

1 These associations comprise over 3,200 companies
2 producing and distributing materials protected
3 by copyright laws throughout the world. To
4 reach foreign markets through legitimate state
5 of the art distribution channels, these
6 companies rely on high-quality copyright
7 protection and enforcement that meets global
8 standards and the elimination of market access
9 barriers. American creators, producers,
10 publishers, workers, and consumers all benefit
11 when U.S. trading partners enact strong
12 copyright laws, effectively enforce those laws,
13 and eliminate barriers to their markets. The
14 ultimate objective to promote markets where the
15 creative industries can bring even more products
16 and services than they currently offer in a
17 variety of ways from a greater diversity of
18 players before an ever-growing global audience.
19 Advancing that objective is a proven means to
20 grow U.S. exports, create good American jobs,
21 and enhance U.S. global competitiveness.

22 With this broad vision in mind, IIPA
23 has participated in every Special 301 review
24 since the 1988 Trade Act created this process.
25 In light of certain stakeholder comments, IIPA

underscores the importance of adhering to the clear statutory mandate and congressional intent of the Special 301 review. It is critical for the Special 301 process to maintain its focus on intellectual property protection. In our case, copyright protection and enforcement, rather than as some suggest used to weaken our trading partners copyright regimes, especially in countries where legitimate rights holders cannot get a toe hold due to inadequate copyright protection or enforcement.

In this year s submission, IIPA recommends that 19 countries be identified in the 2025 Special 301 report, including eight countries on the priority watch list, Chile, China, India, Indonesia, Mexico, Russia, South Africa, and Vietnam. Our submission also highlights additional serious concerns in several other markets that deserve the attention of the U.S. government. As our submission emphasizes, the copyright regime of many U.S. trading partners are inadequate, including a failure to meet obligations to the United States, evolving global norms, or the minimum standards of the WIPO internet Treaties, which

1 set global minimum standards for copyright
2 protections in the digital environment.
3 Moreover, several companies are considering or
4 have adopted legal reform proposals that would
5 further weaken copyright protections or
6 enforcement mechanisms, thereby undermining
7 these markets for the production and
8 dissemination of legitimate copyrighted
9 materials, particularly in the digital
10 environment. The U.S. government should press
11 U.S. trading partners to adhere to well-
12 established global norms, including of the
13 requirement to confine all exceptions and
14 limitations to copyright protections within the
15 three step test. Copyright legal enforcement
16 frameworks that meet these standards enable the
17 free market licensing of creative content, which
18 is critical to ensure the copyright industry to
19 continue to make substantial contributions to
20 U.S. employment and economic growth.

21 Our submission was six enforcement
22 challenges confronting the U.S. copyright
23 industries seeking to compete in overseas
24 markets, starting of course with online piracy,
25 an overarching challenge for all businesses that

1 depend on copyright. This infringement
2 threatens the viability of licensed platforms,
3 and makes it much harder for creators and
4 producers to earn a living from their craft. We
5 applaud the U.S. government for its annual
6 review of notorious markets, which has made a
7 significant contribution in combating systematic
8 online copyright theft. And we urge you to re-
9 double efforts to encourage our trading partners
10 to adopt legal frameworks to prevent the
11 operation or emergence of illegal services,
12 including by fostering cooperation among all
13 industry stakeholders in the online supply
14 chain.

15 Finally, all efforts to address
16 copyright infringement will be unsuccessful if
17 legitimate products and services cannot be
18 brought into a market to meet consumer demand.
19 Whatever form they take, market access
20 restrictions that unfairly impede the entry of
21 legitimate products make it easier for pirate
22 operations to fill the void. Special 301
23 remains a cornerstone of the U.S. effort to
24 advance modern levels of protection for
25 copyright, more effective policies and tools to

1 enforce that protection, and freer, more open
2 markets. We look forward to our continued work
3 with USTR and the other U.S. agencies to advance
4 these goals. Thank you again, and I look
5 forward to your questions.

6 CHAIR LEE: Thank you. So, for our
7 first question, it comes from DHS.

8 MS. VAN HORN: Hello. This is in
9 regard to Mexico. Their prosecutor s office,
10 and even the specialized IP unit, you noted in
11 your filing that they re reluctant to prosecute
12 IP crime, both in the previous administration
13 and this administration. Do you have any
14 information about ones that they have
15 prosecuted? Hopefully successfully?

16 MR. ROSENBAUM: Thanks for that
17 question. I don t have information at my
18 fingertips on that. I ll certainly check, and
19 if I find any successful prosecutions I ll let
20 you know. The issue in Mexico is there s a lack
21 of political will, you know, to bring these
22 prosecutions. It s a low priority, you know,
23 for bringing prosecutions on IP cases. There s
24 also financial constraints, they, you know, had
25 budget cuts, and there are, you know, resource

1 constraints as well. So -- and it s a shame,
2 because Mexico, as I think we know, has a very
3 difficult market in terms of piracy. It s
4 rampant, and bringing, you know, criminal
5 prosecutions to address that concern would go a
6 long way. So, our hope is that they do bring
7 prosecutions.

8 There s another barrier, which we
9 mentioned in our filing on this, which is the
10 criteria for bringing criminal cases, you know,
11 requires a direct economic benefit. And that is
12 not a best practice, and it s inconsistent with
13 Mexico s international obligations. What they
14 really need to do is, you know, change the law
15 so that the standard is substantial impacts on
16 interests of the rights holders, even if there s
17 no financial gain, so those kinds of cases can
18 be brought forward, as well.

19 MS. VAN HORN: Okay, thank you.

20 MR. ROSENBAUM: Thank you.

21 CHAIR LEE: Okay. Thank you. The next
22 question is from the Copyright Office.

23 MS. LANZA: Hello. You state that
24 Uruguay s Decree 404/23 needs to be amended to
25 provide, quote, further clarification from the

1 Uruguayan government confirming the rights of
2 authors and performers to manage their
3 remuneration rights individually as needed.
4 And, quote, additional clarification is
5 necessary to define that these remuneration
6 rights, however exercised, would not be enforced
7 against DSPS, including streaming service
8 platforms and users. So, the question is, can
9 you please provide more detail regarding which
10 provisions Decree 404/23 need to be clarified,
11 as well as elaborate on the concrete negative
12 impacts stakeholders are currently experiencing
13 due to this lack of clarify?

14 MR. ROSENBAUM: Thank you for that
15 question. You know, as we mentioned in our
16 filing, it s Article 5 of the decree is the
17 concern. You know, we don t want the decree
18 fully repealed. It does some helpful things.
19 You know, it clarifies that remuneration paid by
20 phonogram producers, you know, with contractual
21 arrangements to performers, you know, that sort
22 of counts, and that there s no additional
23 remuneration required with DSPs. So, that s
24 good. But Article 5 is a problem. It s created
25 a lot of confusion. The local CMO I think, you

1 know, has used it to assert a broad entitlement
2 to collect remuneration, including for the
3 making available right. And that s a huge
4 problem, because these rights between producers
5 and authors are collectively -- or excuse me,
6 yeah, collectively bargained. And so, you know,
7 with private contractual agreements. And so,
8 you know, this additional remuneration, a
9 potential interpretation of an additional
10 remuneration would upset those arrangements and
11 cause a lot of hardship to the audio visual
12 industry.

13 CHAIR LEE: Okay, thank you for your
14 testimony.

15 MR. ROSENBAUM: Thank you very much.

16 CHAIR LEE: Okay. Next is the
17 Innovation Alliance. Please state your name and
18 organization for the record and start your
19 testimony,

20 MR. POMPER: Okay, thank you. My name
21 is Brian Pomper. I serve as the Executive
22 Director of the Innovative Alliance, and we
23 appreciate the opportunity to testify today with
24 2026 Special 301 report to highlight deeply
25 concerning trends among our trading partners

1 that weaken U.S. patent rights and undermined
2 U.S. technology leadership.

3 The Innovation Alliance is a coalition
4 of research intensive U.S. companies across a
5 wide range of industries. Our members invest
6 billions of dollars each year in research and
7 development. They rely on a predictable,
8 enforceable patent system at home and abroad to
9 turn those investments into new technologies,
10 new products, and high-quality American jobs.

11 Patents are the foundation of U.S.
12 innovation leadership, economic competitiveness,
13 and increasingly, national security. As the
14 U.S. Patent and Trademark Office and the Justice
15 Department wrote in a joint public interest
16 filing, when patent rights are devalued, the
17 entire innovation ecosystem suffers. Research
18 and development investment declines, venture
19 capital becomes scarce for technology startups,
20 manufacturing flees off shore, and America's
21 technological leadership erodes. Innovation
22 follows investment, and investment follows
23 protection. That is why we urge USTR in this
24 year's Special 301 report to add a new
25 subsection on a growing and troubling trend

1 among some U.S. trading partners of taking steps
2 to undercut private licensing negotiations and
3 restrict U.S. patent holders from asserting
4 their rights.

5 The Innovation Alliance s public
6 comment describes our concerns in more detail,
7 but today I want to highlight three developments
8 that together harm U.S. patent holders and
9 threaten U.S. technology leadership. First,
10 foreign courts are increasingly not asserting
11 authority to set global licensing terms for U.S.
12 patents without the patent owner s consent,
13 while simultaneously preventing patent holders
14 from enforcing their rights in other
15 jurisdictions. Courts in China and the United
16 Kingdom in particular have embraced legal tools
17 that allow implementers to pull U.S. innovators
18 into a single national court and impose
19 worldwide licensing terms.

20 Chinese courts allow implementers to
21 drag patent holders into court without their
22 consent and grant licenses setting global
23 royalty rates for the patented technology. They
24 also routinely issue anti-suit injunctions to
25 prevent the patent holder from enforcing its

1 rights anywhere else in the world, including in
2 the United States. This ensures that the
3 Chinese ruling becomes the de facto licensing
4 rate for the global patent portfolio.

5 Similarly, courts in the United Kingdom
6 have assumed authority to set the terms and
7 conditions for global licenses to a patent
8 holder s portfolio without consent. The
9 approach taken in China and the U.K., setting
10 worldwide royalties, not only disregards the
11 territorial nature of patent rights, it also
12 undercuts the market-based private sector driven
13 process and licensing negotiations that
14 businesses have long used to value technology.

15 Second, other countries are proposing
16 to replace voluntary, private arm s length
17 negotiations with administrative or judicial
18 late-setting mechanism that favor implementers.
19 The EU SEP regulation and the UK SEP
20 consultation both follow this trend. These
21 initiatives reduce the value of patented
22 technologies, eliminate due process, and
23 discourage U.S. companies from participating in
24 global standard development processes.

25 Third, U.S. patent holders face a

1 global coordinated effort to limit the
2 availability of injunctive relief for patent
3 infringement. Without the potential that the
4 courts will enjoin them from patent
5 infringement, implementers have strong
6 incentives to infringe first and pay later, or
7 not at all.

8 Recent discussions around the EU s IPR
9 Enforcement Directive illustrate the problem. A
10 report issued earlier this year by DG GROW
11 argues that injunctions are, quote, too readily
12 available or automatic, offering only a single
13 undisclosed report as evidence for this blanket
14 assertion. The report also ignores procedural
15 differences across member states that affect the
16 rate at which injunctions are granted. A common
17 practice is implementer holdout. Large,
18 sophisticated companies use delay, litigation,
19 and regulatory proceedings to avoid paying for
20 technology they are already using. Injunctive
21 relief is the only meaningful check against
22 abusive implementer behavior, efforts to weaken
23 injunctions, devalue U.S. technologies to the
24 benefit of foreign implementers, many of whom
25 operate with significant state, financial, and

1 political support.

2 These global trends threaten U.S.
3 technology leadership. With the United States
4 and China battling for technological
5 superiority, U.S. innovators need certainty that
6 their IP rights will be respected in the United
7 States and around the world to incentivize risky
8 R&D investment that leads to the
9 commercialization of critical and emerging
10 technologies. Efforts in the EU and the U.K. to
11 restrict U.S. patent rights cripple U.S.
12 innovators ability to compete in key technology
13 areas, and legitimize efforts by China to
14 devalue U.S. inventions to benefit its own
15 domestic industries.

16 For these reasons, the Innovation
17 Alliance urges USTR to use the 2026 Special 301
18 report to clearly identify and track efforts and
19 proposals by our trading partners to place
20 unfair limits and burdens on the enforcement of
21 patents owned by U.S. companies. Thank you for
22 this opportunity to testify and for your
23 continued leadership in defending U.S.
24 innovation. We look forward to continuing to
25 work with USTR and the committee members to

1 secure U.S. technology leadership by protecting
2 U.S. IP rights around the world. I look forward
3 to your questions.

4 CHAIR LEE: Thank you. The first
5 question comes from the Patent and Trademark
6 Office.

7 MR. GERK: Thank you. Your submission
8 raises concerns about certain practices in SEP
9 cases in China, and characterizes them as
10 efforts by China to devalue U.S. inventions to
11 benefit China's own domestic industries. Can
12 you please expand on how China's practices defer
13 from those in other jurisdictions?

14 MR. POMPER: Sure. Well, I would point
15 to the Panasonic versus Xiaomi case as a good
16 example of this, where the Chinese court took it
17 upon itself to issue a global licensing, and it
18 differentiated between the price that we paid in
19 developed countries like the United States and
20 the EU, and in developing countries like China,
21 where it would pay a lower rate. I think that's
22 a pretty direct example of how the Chinese have
23 used this mechanism to benefit their own
24 domestic manufacturers.

25 I'd also just note of the handset, I

1 think the largest handset makers in the world, I
2 believe there s one in the United States,
3 there s one in Korea, and all the others are in
4 China. So, the degree to which China can
5 devalue the price paid for standard essential
6 patents, that s going to benefit their handset
7 manufacturers.

8 CHAIR LEE: Great. The next question
9 is from USTR.

10 MS. AVERY-PAGE: Thank you. Your
11 submission recommended a new subsection of the
12 Special 301 report on efforts to weaken patent
13 rights, such as efforts to restrict the
14 availability of injunctions for standard
15 essential patent disputes. However, U.S.
16 stakeholders have raised concerns about how the
17 issuance -- I m sorry? Oh, sorry. Other U.S.
18 stakeholders have raised concerns about how the
19 issuance of injunctions in SEP cases lead to
20 higher patent royalties. How should we
21 reconcile the differences between these views?

22 MR. POMPER: Sure. Look, I think it
23 makes total sense if I were an implementer that
24 I would seek tools to try to lower the price of
25 something of value that I would need for my

1 product. So, I don't begrudge those who argue
2 for that here. I think from the standpoint of
3 U.S. policy makers in the U.S. government,
4 however, you would have to look at what is the
5 best policy, I think, to ensure the United
6 States continues to lead in developing emerging
7 technologies, and maybe even more importantly
8 that it's U.S. companies that are participating
9 in standard setting processes.

10 Because I would prefer the United
11 States continue to take the lead in setting
12 standards around the world, and I worry that if
13 we develop a system where private sector actors
14 in the United States who develop these
15 technologies are not able to get a market-based
16 negotiated rate on the value of their
17 technologies, other entities that are in
18 countries that are not maybe market-based and
19 who don't depend upon the value they're able to
20 negotiate in licensing negotiates, who maybe get
21 government support, will ultimately be those
22 entities aren't going to be working in the
23 standard setting processes.

24 So, from my standpoint, I understand
25 that argument, I just think from the standpoint

1 of the U.S. government, I think we should look
2 at what the Department of Justice and U.S. PTO
3 said in their statements in Radian and Netlist
4 and Interdigital. I thank them for their
5 statements on that, where they talked about the
6 need for injunctive relief, including standard
7 essential patent cases.

8 CHAIR LEE: Okay, and I think we have
9 time for one more question from ITA.

10 MR. MITCHELL: Your submission found
11 concerning the approach of the U.K. courts that
12 set global patent license terms in SEP disputes.
13 Can you explain how these U.K. approaches differ
14 from what occurs or what might occur in the U.S.
15 courts?

16 MR. POMPER: Sure. I think
17 fundamentally, the Innovation Alliance does not
18 object to the idea of global rate setting. In
19 fact, often in private sector negotiations
20 that s exactly what s agreed to, is a global
21 rate. I think where we object is the courts
22 acting in such a fashion without consent. So,
23 the U.K. has been forcing U.S. companies to
24 accept licensing rates when the U.S. company
25 hasn t consented to jurisdiction, it hasn t

1 consented to allow the court to set such a rate.

2 MR. MITCHELL: Thank you.

3 MR. POMPER: Just one more thing I d
4 note, in the U.K., when you ve got these -- they
5 effectively are issuing advisory opinions, which
6 of course is consistent with U.S. law, and
7 consistent with the case and controversy
8 requirement in the U.S. Constitution.

9 CHAIR LEE: Thank you very much for
10 your testimony.

11 MR. POMPER: Thank you.

12 CHAIR LEE: Okay, next is the
13 Intellectual Property Owner s Association.

14 MR. VALENTE: Thank you.

15 CHAIR LEE: All right, please state
16 your name and organization for the record and
17 begin your testimony.

18 MR. VALENTE: Thank you very much. My
19 name is Thomas Valente. I am the Senior
20 Director for Global Affairs at the Intellectual
21 Property Owners Association, also known as IPO.
22 On behalf of IPO and its members, I d like to
23 thank the committee for the opportunity to
24 testify today, and for your continued work in
25 ensuring U.S. trading partners provide adequate

1 and effective protection of IP rights and fair
2 and equitable market access to companies who
3 rely on IP protection.

4 IPO is an international trade
5 association representing a big tent of diverse
6 companies, law firms, service providers, and
7 individuals in all industries and fields of
8 technology that own or are impacted by IP
9 rights. IPO members make vital contributions to
10 America s economic success by developing
11 advances that drive exports and create jobs.
12 Innovators assume considerable risks and rely on
13 IP to protect investments in new technology. In
14 our comments to the subcommittee, IPO describes
15 numerous challenges presented to adequate and
16 effective protection of IP rights around the
17 world. I will now address some of these
18 challenges.

19 First, trade secret protection and
20 related issues. For years, Article 39 of the
21 TRIPS agreement has required WTO members to
22 ensure effective protection of trade secrets.
23 However, many countries have not aligned their
24 enforcement environments with TRIPS obligations.
25 Further, the positive intentions behind the

1 efforts in overall data protection, AI
2 regulation, and privacy must be balanced with a
3 fundamental purpose of IP rights that is
4 encouraging innovation and progress by allowing
5 IP to be subject to appropriate protections.

6 Current policies risk exposing trade
7 secrets, proprietary data, and confidential
8 algorithms. In addition, several U.S. trading
9 partners do not provide regulatory data
10 protection, or RDP, or have inadequate RDP
11 regimes. IPO believes that USTR should continue
12 to prioritize appropriate IP protection and
13 ensure high standards in trade agreements.

14 The next issue is counterfeiting.
15 Counterfeiting poses a significant health,
16 safety, and economic threat across the globe.
17 Online platforms and messaging services enable
18 counterfeiters to evade detection. Governments
19 must strengthen enforcement mechanisms, increase
20 penalties for counterfeiting, and enhance cross
21 border collaboration.

22 IPO has previously, in their Special
23 301 comments, raised issues about compulsory
24 licensing. Several countries have adopted or are
25 considering expanding compulsory licensing

1 regimes. Although IPO recognizes that
2 compulsory licenses may be legally permissible
3 in limited and rare situations, IPO believes
4 that licensing of IPO rights is best
5 accomplished through voluntary efforts. This is
6 because granting compulsory licenses undercuts
7 the importance of a predictable IP system, and
8 undermines investment in innovative solutions
9 that benefit society.

10 Patent enforcement issues, as you can
11 imagine, are very important to IPO. Weak
12 enforcement, excessive evidentiary burdens,
13 insufficient judicial expertise, and slow legal
14 processes undermine global patent systems. IPO
15 urges reforms and ensure effective, fair, and
16 efficient resolution of patent disputes.

17 Genetic resources and traditional
18 knowledge requirements are also an important
19 issue to IPO. Patent laws that impose
20 disclosure requirements regarding the source and
21 origin of genetic resources introduce
22 uncertainties into the patent system that
23 inhibit innovation in relevant technologies.
24 IPO believes that such requirements risk
25 undermining the innovation ecosystem.

1 Finally, unpredictability associated
2 with AI related patent applications and
3 copyrightability of works created using AI.
4 Divergent global approaches to AI inventorship
5 disclosure and copyrightability also create
6 legal uncertainty. IPO encourages USTR to
7 advocate for greater harmonization in this area,
8 while also ensuring trade secrets, proprietary
9 data, and confidential algorithms are subject to
10 appropriate protection, as I mentioned
11 previously.

12 In conclusion, effective IP protection
13 in foreign markets is vital for American
14 innovations, and enables investment in research
15 and development and sharing of information among
16 partners with the knowledge that it will be
17 protected, which results in important offerings
18 in the global marketplace. IPO looks forward to
19 looking -- excuse me. IPO looks forward to
20 working with you to build a global IP
21 environment that encourages innovation and
22 safeguards quality high-paying jobs in
23 innovative industries. On behalf of IPO, thank
24 you again to the subcommittee for its efforts
25 which will sustain and grow America s economy

1 and provide new innovations to meet global
2 challenges.

3 CHAIR LEE: Thank you. The first
4 question we have comes from USDA.

5 MR. L ESTRANGE: Thank you. On
6 Indonesia, your submission describes concerns
7 with Indonesia s patent law that persists after
8 amendments in 2024, as well as concerns with a
9 new requirement to file an annual patent working
10 statement. Can you please provide an update on
11 how the implementation of the 2024 amendments to
12 the patent law has impacted U.S. stakeholders?

13 MR. VALENTE: With respect to
14 Indonesia, we are concerned, and as you
15 mentioned, with respect to the working
16 requirement, I can tell you that the working
17 requirement is always of concern to IPO. We ve
18 seen the working requirement in India. We
19 believe that it inhibits U.S. innovators from
20 being able to use their technology in a way that
21 will support the economic and innovation
22 ecosystem of a country, because there is a great
23 concern about compulsory licensing. However,
24 the specifics of the October 2024 law, we ll
25 have to get back to you on if there have been

1 practical aspects of that implementation that
2 our members can report to us on.

3 CHAIR LEE: Okay. The next question
4 comes from DHS.

5 MS. VAN HORN: Hello. So, this
6 question is about Canada's border enforcement.
7 So, you mention in your filing that they're not
8 seizing enough IP infringing goods at the
9 border, but that they've committed to staffing
10 up more officers in that regard, and that you
11 were hopeful for the future. So, our question
12 is, have any of your members attempted to give
13 like an industry-focused training to these
14 officers about detecting infringing goods at the
15 border? And if so, has Canada been receptive?

16 MR. VALENTE: That's a great question.
17 Our members have indicated this concern about
18 Canada, but I'm not aware that they've given any
19 training. However, we can follow up on that.
20 It does sound like that would be a good idea,
21 and so I'm happy to further research that and
22 let you know. But we appreciate that
23 suggestion.

24 CHAIR LEE: Okay. It appears we're
25 just kind of going down the line here for this

1 testimony, so the next question comes from DOJ.

2 MR. MERRIAM: Thanks. Heading a little
3 south, question about Colombia. You mentioned
4 that the federal courts had been kind of
5 dropping the ball on taking effective and
6 deterrent enforcement actions. Do you have any
7 specific examples that you could share with us
8 now? Either now, or in written follow up? That
9 would help the committee.

10 MR. VALENTE: Yes. No, I appreciate
11 that question. IPO is very concerned, I would
12 say, in general, about enforcement in Latin
13 America. With respect to Colombia, we can get
14 back to you on the specifics that our members
15 are encountering there.

16 MR. MERRIAM: That would be helpful,
17 thank you.

18 MR. VALENTE: Thank you.

19 CHAIR LEE: Thank you for your
20 testimony.

21 MR. VALENTE: Thank you.

22 CHAIR LEE: Okay. We have Knowledge
23 Ecology International on the schedule, but they
24 notified us earlier that they were no longer
25 able to testify today. So, if the

1 Pharmaceutical Research and Manufacturers of
2 America, PhRMA is available, we ll keep on
3 moving along on the agenda. Okay. Please state
4 your name and organization for the record and
5 begin your testimony.

6 MR. KAWKA: Thank you. My name is
7 Ernest Kawka, Deputy Vice President for
8 International at the Pharmaceutical Research and
9 Manufacturers of America, PhRMA. PhRMA
10 appreciates this opportunity to testify before
11 the Special 301 committee on behalf of the
12 country s leading innovative biopharmaceutical
13 companies.

14 Our industry supports more than five
15 million U.S. jobs, and recent announced five
16 hundred billion dollars in new U.S.
17 manufacturing and infrastructure investments
18 over the next decade. U.S. biopharmaceutical
19 leadership depends on strong intellectual
20 property pricing and reimbursement systems that
21 reward innovation and a level playing field
22 abroad. The Special 301 report is a critical
23 tool to identify and resolve emerging and
24 longstanding issues with trading partners. We
25 welcome USTR leveraging the report in the

1 recently announced trade frameworks and
2 investigations, and support USTR building on
3 these outcomes to secure durable policy reforms
4 in future negotiations.

5 PhRMA s 2026 submission highlights how
6 key trading partners deny U.S. companies fair
7 and reciprocal treatment by failing to provide
8 adequate IP protections and appropriately value
9 innovative medicines. For instance, countries
10 are increasingly measuring regulatory data
11 protection terms from first global launch,
12 limiting product eligibility for protection,
13 conditioning protection on localization
14 requirements, and overall reducing terms.

15 For example, the EU recently finalized
16 proposals that would shorten RDP terms and make
17 restoration of the laws term contingent on
18 prioritizing the EU for global medicine
19 launches. Despite currently not providing any
20 RDP, China and India are developing policies
21 that limit full protection to products that are
22 not approved elsewhere, or tying protection
23 terms to patent status. Together, these
24 measures are not reciprocal with U.S. practice,
25 and reinforce the need for a Special 301 review

1 that compares trading partners policies with
2 U.S. standards.

3 The ability of U.S. innovators to
4 secure, maintain, and enforce their patent
5 rights abroad is under similar pressure. The
6 EU, again, recently expanded exceptions to
7 biopharmaceutical patent infringement, known
8 also as the Bolar exemption, to enable
9 activities that every other economy considers
10 commercial and patent infringing. Just this
11 month, Brazil s congress advanced harmful
12 compulsory licensing bills affecting a very wide
13 range of medicines.

14 The special 301 statute also requires
15 USTR to consider harmful market access practices
16 such as unfair pricing and reimbursement
17 policies that undermine the value of U.S. IP,
18 and in turn, U.S. competitiveness. Previous
19 administrations have provided insufficient
20 attention to this requirement in the statute.
21 We ask this committee to utilize the Special 301
22 report to prioritize such market access concerns
23 consistent with the president s directive to his
24 administration to ensure that foreign
25 governments are not engaged in acts, policies,

1 practices, that suppress the price of
2 pharmaceutical products below their fair market
3 value.

4 PhRMA strongly urges USTR to prioritize
5 these issues in the 2026 report, specifically in
6 Europe, Japan, and Canada. Germany and France,
7 for example, set low prices using biased health
8 technology assessments, reference old and
9 inferior products as price benchmarks, and
10 mandate price cuts and rebates to meet
11 government budgets. Japan devalues new
12 innovative medicines through Draconian rules
13 that set low prices of patented medicines at
14 launch, and then aggressively cut prices further
15 throughout the patent period. Canada uses low
16 and outdated monetary thresholds per life year
17 gained for clinically proven treatments to make
18 reimbursement contingent on price cuts of up to
19 70 to 90 percent.

20 The U.S.-U.K. pharmaceutical pricing
21 agreement established important first steps by
22 the U.K. to pay its fair share of innovative
23 medicines. This outcome demonstrates that U.S.
24 government trade tools are effective leverage to
25 address the unfair pricing and reimbursement

1 policies abroad. Finally, the 2026 report
2 should highlight how China, Canada, Mexico, and
3 other trading partners have failed to implement
4 their trade commitments with the U.S.

5 In conclusion, PhRMA encourages USTR to
6 use all available tools, including the Special
7 301 authorities, to address the challenges
8 outlined today and in our written submission,
9 which recommends the listing of 17 markets in
10 the 2026 Special 301 report. Thank you, and
11 look forward to your questions.

12 CHAIR LEE: Thank you. Our first
13 question comes from USTR.

14 MS. AVERY-PAGE: Thank you. So on
15 China, your submission describes how CNIPA s
16 patent reexamine and invalidation department has
17 extremely strict inventive step and supplemental
18 data requirements and fast docket times, which
19 can be used by patent infringement defendants to
20 circumvent the judicial process. Can you please
21 expand on whether there have been any trends in
22 China s proceedings for invalidating patents,
23 and how these trends impact U.S. stakeholders?

24 MR. KAWKA: Claire, thank you for the
25 question. I think overall, we have seen an

1 uptick in invalidation proceedings, and I think
2 this follows the phase one implementation of
3 China's patent linkage system. Prior to that,
4 this has been, the patent invalidation in China,
5 has been a very chronic issue. And now with the
6 patent linkage system, what we're seeing is,
7 because of follow on applicants certifying that
8 they're either not infringing or there's not a
9 patent, that locks up the linkage proceeding.
10 But meanwhile, or in parallel, they're seeking
11 to invalidate any underlying patents. And we're
12 seeing a very glaring loop hole between the
13 patent linkage system and the availability of
14 this patent invalidation mechanism through
15 CNIPA.

16 CHAIR LEE: Thank you. The next
17 question is from HHS.

18 MS. CARSON: Thank you, and this has a
19 little bit of a build-up, but it is specifically
20 around your EU comments. So, in your 2025
21 Special 301 submission you recommended placement
22 of the EU on the watch list, while your
23 submission for 2026 recommends placement on the
24 priority watch list. And I just want to
25 understand a little bit more about your

1 thinking. So, in the latter, you've noted the
2 erosion of intellectual property protections in
3 the European Union, and serious questions about
4 the EU's commitment to high standard
5 intellectual property protection and
6 enforcement, as set forth in the framework for
7 an agreement on reciprocal, fair, and balance
8 trades.

9 You've spoken a little bit about this
10 today, but could you please elaborate on any
11 recent developments occurring in the EU that
12 have eroded the IP regime there and caused you
13 to escalate your Special 301 recommendation in
14 2026? And secondly, could you address whether
15 those developments reflect policy proposals
16 under consideration, or new policies that have
17 actually taken effect and are in place? Thanks.

18 MR. KAWKA: Thank you. Maybe I'll take
19 the last question first. There have been
20 significant developments in just the past three
21 months in Europe, starting with the approval of
22 the general pharmaceutical legislation. In the
23 EU, from an IP perspective, there are two
24 primary issues that will change European policy
25 and in fact really modify global practice on

1 regulatory data protection and both infringement
2 to patents. This is the Bolar exception.

3 We could go deeper into this, but on
4 RDP, the EU is now introducing, they need to
5 implement this at the member state level, but it
6 is final law, introducing contingencies on
7 regulatory data protection based on market
8 access. So, if you do not launch in Europe,
9 you, or companies will risk not receiving
10 regulatory data protection in the European Union
11 and its member states. In Bolar, this is a
12 research exception that was created in the
13 United States. This is for accelerating or
14 facilitating generic approvals, but the focus is
15 regulatory activities, non-commercial
16 activities. What Europe has done is now
17 expanded that exception to commercial
18 activities, including pricing and reimbursement.

19 CHAIR LEE: Okay. We ll try to fit in
20 one more question from PT0.

21 MR. GERK: Thank you. PhRMA states,
22 according to a recent analysis, the average
23 patent examination timeline for
24 biopharmaceutical patents granted from January
25 2020 through November 2025 in Brazil was 9.15

1 years. Could you please share more details on
2 this analysis, bearing in mind that -- sorry.
3 While recognizing that biopharmaceuticals is a
4 subset of biotechnology, we do note that INPI-
5 Brazil's official numbers for the October
6 through December 2025 timeframe indicate that
7 the average time for technical decision counted
8 from the filing of the application on
9 biotechnology is 6.3 years. So, seemingly a
10 little bit of difference there. Could you
11 elaborate on that?

12 MR. KAWKA: Thank you for the question.
13 We're happy to provide our methodology for the
14 backlog issue or that figure. I guess, long
15 story short is we've winnowed that down to
16 biopharmaceutical products. So the backlog for
17 patent applications for our industry hovers in
18 or about 10 years, a little over nine years,
19 currently. This just underscores the necessary
20 policies to attack that backlog or to address
21 it, and we ask USTR and the interagency to look
22 into patent term adjustment mechanisms with your
23 counterparts in Brazil.

24 CHAIR LEE: All right. Thank you for
25 your testimony.

1 MR. KAWKA: Excellent. Thank you.

2 CHAIR LEE: Next is Public Citizen.

3 Okay, please state your name and organization
4 for the record and begin your testimony.

5 MR. MAYBARDUK: Good afternoon. I'm
6 Peter Maybarduk, Access to Medicines Director,
7 Public Citizen. It's good to see you. We're a
8 consumer group with more than one million
9 members and supporters and a 50-year history of
10 working for the public interest. And our
11 testimony is rooted in years providing technical
12 assistance on the ground, working with
13 developing countries to overcome price and
14 supply barriers to access to medicines,
15 including those rooted in intellectual property
16 and trade. And equally, helping lower drug
17 prices here in the United States, where we
18 advise quite a bit of legislation and policy.
19 Of course, I've been in to testify before you
20 for many years as well, and it's good to see you
21 again.

22 We miss our colleagues from the Office
23 of Global Affairs, who followed these issues
24 year-round from the perspective of health. And
25 in their absence, that task falls to you now,

1 because while commerce is at stake here, so are
2 people's lives and their ability to have access
3 to affordable medicine all around the world.

4 That'll be my first point. I'll make
5 three. The second, that raising prices abroad
6 is not going to do anything to lower them at
7 home. And third, you can faithfully execute
8 your duty under both the statute and today's
9 politics with a discretion and balance that can
10 protect people's lives.

11 So first, there's a long and terrible
12 history of people dying due to patent barriers
13 that kept life-saving medicines out of reach.
14 Those of you that have worked in this field for
15 some time know our founding story of HIV/AIDS,
16 where tens of millions of people died due to the
17 high prices of existing AIDS drugs, too high for
18 donors or governments to buy at scale. The U.S.
19 government at that time fought on the side of
20 drug corporations against Nelson Mandela, and it
21 became a national embarrassment that the U.S.
22 has long sought to right. It was generic
23 competition showed that AIDS drugs can be made
24 for a dollar a day, and enabled the Global Fund
25 and PEPFAR and more than 20 million lives saved

1 since, and a tremendous United States
2 accomplishment.

3 Now, I know that none of us want to go
4 back to the dark days, but when Special 301
5 reaches into the health policy decisions of
6 other countries, it bears vestiges of those
7 mistakes. Today, high drug prices are a grave
8 and global concern in the United States and for
9 our partners. One in four Americans self-
10 rations access to treatment due to the price of
11 medications. It costs people lives. Insulin,
12 heart disease, cancer. Now the U.S. and most
13 governments recognize that expansive patent
14 monopolies facilitate high prices and are
15 reexamining our rules under that basis.

16 Okay. Second point. There is no
17 logical reason, let alone evidence, to think
18 that raising drug prices abroad is going to
19 lower them here. The U.S. International Trade
20 Commission agreed when it had a brief look at
21 this issue. Drug corporations are of course
22 working to maximize revenue in every market,
23 like any other business. The difference is in
24 drugs they're protected by -- insulated from
25 competition by patents. They will, of course,

1 charge Americans as much as they can, no matter
2 what happens abroad, and there's no reason we
3 should expect anything different.

4 In fact, by going after other
5 countries, we embolden the same abusive pricing
6 practices that hurt U.S. consumers. We're
7 encouraging companies to do more of that. And
8 of course, if you succeed in raising drug prices
9 abroad, then the most-favored nation price for
10 Americans becomes higher, too. So these
11 strategies work against each other.

12 The health consequences for our trading
13 partners is serious. Researchers in the U.K.
14 estimate that the new changes there will
15 potentially cost thousands of lives due to the
16 substitution for low-cost -- low loss cost-
17 effective health interventions. Drug prices are
18 actually going up in Europe, because pharma is
19 raising them. That's why Europe is trying to do
20 something about it. And now Pfizer is talking
21 about actually withholding drugs that people
22 need, just not selling them until -- they're
23 like holding countries for ransom until they get
24 the sort of policy changes that they want. The
25 United States should not support such life-

1 threatening recklessness.

2 Finally, you can meet your
3 responsibility with moderation that supports
4 both health and trade interests. We're
5 concerned about the Special 301 creep from
6 intellectual property to pricing policy. As we
7 understand the 301 mandate, fair and equitable
8 market access comes into play only where
9 countries violate an international agreement or
10 discriminate. That's not what's going on with
11 drug pricing rules. Countries are negotiating
12 for better prices, the same as we do here.
13 Bipartisan policy Medicare price negotiation is
14 getting stronger each year.

15 On the scope, as you know from our
16 testimony, we think you should focus on
17 counterfeiting and piracy. Those are law
18 enforcement issues where you're not going to see
19 significant objections from the public interest
20 community that's calling on countries to stop
21 criminal enforcement. That's different from
22 reaching into policy. One example of the
23 consequences is the recent trade agreement with
24 Argentina. We were surprised and dismayed to
25 see the Special 301 complaint list just

1 incorporated wholesale into the Argentina U.S.
2 trade agreement. That quickly bypasses the
3 history of legislative review and careful
4 questioning and examination that Argentinean
5 experts have put into designing their own
6 policy. For example, unpatentability
7 guidelines, which can help prevent excessive
8 monopolies and bar generic competition.

9 If that's a template for future trade
10 agreements, it's dangerous indeed, and your work
11 becomes even more sensitive. Final thought on
12 that, because if your words can instantly
13 appear, the words of this committee can
14 instantly appear in a trade agreement and
15 binding country laws with little debate, you may
16 find yourselves effectively writing other
17 countries' laws, or at least writing the
18 template for those laws. That's a great
19 responsibility, and we hope that you can take it
20 on with as much humility as possible and respect
21 for the expertise around the world that people
22 have put into crafting those laws. And above
23 all, with attention to the delicate interest of
24 health. Thanks for your time.

25 CHAIR LEE: Thank you. The first

1 question is from USTR.

2 MS. AVERY-PAGE: Great, thank you.

3 Thank you. So you stated in your submission,
4 and just now as well, that the Special 301
5 report should not discuss pharmaceutical pricing
6 issues because they do not constitute
7 discriminatory non-tariff trade barriers that
8 deny fair and marketable access to United States
9 persons that rely upon intellectual property
10 protection. However, other stakeholders have
11 raised concerns that restrictive pricing
12 policies constitute significant non-tariff trade
13 barriers and do impact their ability to operate
14 in a market. So, we would welcome a response to
15 these concerns, including whether, in your
16 assessment, there are any policies affecting
17 pharmaceutical prices that would cause concern
18 or constitute a non-tariff trade barrier.

19 MR. MAYBARDUK: So of course pharma
20 wants to make more money and is going -- you
21 know, any policy that impinges on their freedom
22 to price as they choose under monopoly
23 conditions is -- they'd love to see it, you
24 know, classified as a trade barrier. But if
25 there isn't a specific allegation of

1 discrimination against U.S. firms or a violation
2 of international agreement, you know, in our
3 view, it falls outside the statute, or at least
4 there's no particular reason that USTR needs to
5 go there.

6 For any sort of counter examples, they
7 are mostly issues that I am less close to. I
8 understand some of the concerns about practices
9 in China, perhaps, but I would have to look at
10 it. When we talk about Europe pricing and
11 reimbursement, this is price negotiation. It's
12 what we are doing here, except with health
13 systems that are more expansive. So I just -- I
14 don't see discrimination against a U.S. firm to
15 undergird that complaint.

16 CHAIR LEE: Okay. Thank you. The next
17 question is from the Patent and Trademark
18 Office.

19 MR. GERK: Turning to Brazil, your
20 submission cites data from the Government of
21 Brazil on patent pendency period for
22 biopharmaceutical patents. Can you please
23 provide more context about the cited data,
24 including whether it describes statistics for
25 only patent applications with decisions issued

1 between October to December of 2025?

2 MR. MAYBARDUK: Yeah, I don't have that
3 currently in hand, but we'll happily look at it.
4 I understand the controversy from the prior
5 speaker. I mean, I think a couple of points
6 that we'd make about it is, in our testimony we
7 note that a Brazilian court found that Brazil
8 actually has a longer effective patent term even
9 than the United States. Now, maybe that's
10 across technologies, I don't know, so we'll look
11 at it and get into it. But the other sort of
12 real -- also, and Brazil's been making progress
13 on this issue, from what we understand.

14 But the underlying policy issue is, you
15 know, the 20-year patent term is intended to
16 account for that sort of variance, and the CEO
17 of Pfizer took great pride in helping write the
18 TRIPS rules. Like, the pharmaceutical industry
19 was very involved in developing the rules by
20 which the world now operates. And now they're
21 trying to come back and have a second bite at
22 the apple and say oh, actually, we didn't mean
23 it. The patent should be even longer. If a
24 patent office moves quickly to approve a patent,
25 it's not like the public gets time back for the

1 public domain, right? The patents only get
2 longer. So that's a framework that is
3 advantaging rights holders at the expense of
4 public budgets and affordable medicine.

5 CHAIR LEE: Thank you. We have one
6 more question. It's from HHS.

7 MS. CARSON: Sure. And thanks for your
8 earlier comments about my former colleagues with
9 Health and Trade at Office of Global Affairs.
10 So just wanted to probe a little bit more on
11 your points around this 301 report not singling
12 out countries for medicine pricing practices
13 that the U.S. is considering domestically. So
14 could you just drill down a little bit more on
15 which country practices you're referring to and
16 how these practices are being considered by the
17 U.S.? Thanks.

18 MR. MAYBARDUK: Sure. Well, I mean,
19 the United States has a robust Medicare
20 negotiation framework for which there are --
21 which is expanding every year. We're saving
22 more money each year through more assertive
23 negotiation policies and covering more drugs.
24 There are many proposals on the table and being
25 debated in Congress to lower the delay for when

1 drugs enter the market, expand the number of
2 covered drugs, and I don't think this is
3 dissimilar from what, for example, European
4 countries are doing, except, you know, they
5 have, in some cases, a single payer, right?
6 You're negotiating for the entire health system.
7 And they're also, in some cases, saying that we
8 won't cover that drug beyond a certain price.

9 And I guess one could say oh, that's
10 the issue there, we're not getting coverage.
11 But this is the precise issue that pharma is
12 litigating in the U.S. courts right now over the
13 Inflation Reduction Act, and they're losing very
14 badly in every single case because it's freedom
15 of contract. The government can buy or not buy
16 at a particular price, and the government has
17 freedom of contract like every single of one us
18 in this room. So we're also -- the U.S.
19 government is also looking at a variety of
20 patent reforms, many of which have bipartisan
21 support, licensing and other policies. And
22 there is, for example, now -- I'll wrap up here,
23 but there is, again, a bipartisan policy that
24 both the Biden White House and the Trump White
25 House have supported that is in effect, that,

1 for example, requires access plans for new
2 technologies developed through the National
3 Institutes of Health, right? So, like, these
4 are positive developments, in our view.

5 CHAIR LEE: Okay. Thank you for your
6 testimony.

7 MR. MAYBARDUK: Thank you.

8 CHAIR LEE: Okay. Next is the U.S.
9 Chamber of Commerce Global Innovation Policy
10 Center. Okay. Please state your name and
11 organization for the record, and start your
12 testimony.

13 MS. ANDERSON: Absolutely. Good to see
14 everybody today. My name is Kelly Anderson. I
15 am the Vice President of International Policy at
16 the Chamber's Global Innovation Policy Center.
17 Thank you for the opportunity to testify on the
18 need for stronger global IP standards.

19 Robust U.S. leadership, whether through
20 bilateral dialogue, regional partnerships, or
21 the multilateral system is essential to ensuring
22 that American businesses face fair competition
23 abroad. U.S. engagement in international
24 organizations is particularly critical to
25 advancing pro-IP priorities globally,

1 safeguarding American innovation and creativity,
2 and promoting American interests abroad. U.S.
3 leadership at the World Intellectual Property
4 Organization and World Trade Organization remain
5 pivotal.

6 The 2026 WIPO elections present an
7 important opportunity to ensure that all WIPO
8 leadership positions are held by qualified, pro-
9 IP personnel who will advance WIPO's mandate to
10 promote the protection and enforcement of IP
11 rights worldwide. Likewise, at the WTO, the
12 United States must continue to defend core TRIPS
13 principles and oppose efforts to weaken IP
14 standards. IP protection also underpins the
15 integrity of modern trade agreements, ensuring
16 fair competition for American innovators and
17 creators globally. Including strong IP
18 protection in bilateral deals is essential to
19 driving innovation, creativity, and economic
20 growth.

21 It is equally important that our
22 trading partners appropriately implement their
23 existing IP-related trade commitments. With the
24 USMCA joint review underway, we encourage the
25 administration to prioritize full implementation

1 to ensure predictability for American innovators
2 and creators. Similarly, we encourage the
3 administration to continue pressing China to
4 fully implement its IP-related phase one
5 commitments to create a transparent and
6 predictable system for American businesses
7 operating in China.

8 The Chamber's 301 submission also
9 highlights key markets where U.S. government
10 engagement will be critical to strengthening the
11 framework for IP protection and enforcement. In
12 Europe, the general pharmaceutical legislation
13 weakens the EU's IP framework, exacerbates
14 concerns about European freeloading on American
15 innovation, and creates an unlevel playing field
16 for American businesses seeking to invest in
17 Europe. We encourage the administration to
18 utilize the ongoing trade dialogue or other
19 trade tools to ensure that the EU creates a
20 pharmaceutical landscape that prioritizes
21 groundbreaking innovation, remains fully
22 consistent with the EU's international
23 obligations, and bolsters Europe's competitive
24 environment for U.S. investors in innovative
25 technologies.

1 In Latin America, we acknowledge recent
2 constructive engagement with our trading
3 partners. In Argentina, the Chamber appreciates
4 the administration's recent announcement of an
5 agreement on reciprocal trade and investment
6 with Argentina that seeks to address several
7 longstanding IP challenges. We look forward to
8 working with this administration to ensure that
9 future agreements with our trading partners
10 address the remaining IP challenges included in
11 our 301 submission.

12 Likewise, in Chile, the U.S. Chamber
13 and AmCham Chile have constructively engaged
14 with the Chilean government to develop an IP
15 roadmap to address outstanding IP concerns, and
16 we encourage USTR to continue to work with Chile
17 to address additional IP policies that hinder
18 the competitiveness and growth of the business
19 community.

20 In Colombia, we are increasingly
21 worried about the government's growing use of
22 compulsory licenses as a cost containment
23 strategy, rather than a narrowly tailored
24 measure of last resort. We urge the
25 administration to work closely with Colombia to

1 promote access strategies that support patients
2 while respecting IP protections, encouraging
3 investment, and maintaining legal certainty for
4 innovative companies.

5 In Asia, the Chamber welcomes the
6 administration's recent efforts to secure a
7 bilateral trade agreement with India. India
8 generally remains a challenging market for U.S.
9 innovators and creators, and the Chamber
10 encourages the U.S. government to utilize
11 ongoing trade discussions to help modernize
12 India's IP regime as a critical step toward
13 solidifying India's regional leadership as a hub
14 for innovation and creativity.

15 These examples are a small yet critical
16 snapshot of the challenges IP-intensive
17 industries face in global markets. Strong
18 American leadership will be essential to
19 addressing these concerns, safeguarding American
20 IP, promoting economic growth, and protecting
21 national security. The Chamber looks forward to
22 working with the Trump Administration to
23 confront these challenges and help build a
24 global IP framework that supports millions of
25 American jobs and strengthens our national

1 competitiveness.

2 CHAIR LEE: All right, thank you. The
3 first question we have is from USTR.

4 MS. AVERY-PAGE: Great, thank you. So
5 you highlighted in your submission that the
6 Chamber encourages the U.S. government to work
7 with their South African counterparts to ensure
8 that all of the concerning provisions and two
9 copyright amendment bills are dropped. What are
10 your members' top concerns regarding these
11 bills?

12 MS. ANDERSON: Absolutely. You know,
13 the South African copyright bills are not
14 something I've looked at recently, so I'm happy
15 to get you some more detailed feedback from our
16 members on this.

17 CHAIR LEE: Okay. The next question
18 comes from ITA.

19 MR. MITCHELL: On India, your
20 submission notes India's 2024 improvements to
21 its patent opposition proceedings, but you
22 suggest that most of those improvements have not
23 been fully implemented. Could you provide some
24 examples of this, specifying which improvements
25 are not yet fully in place?

1 MS. ANDERSON: Absolutely. I think our
2 members were encouraged to see some of the
3 changes that were included in those updates to
4 India's patent framework. They've really built
5 upon some longer standing momentum that we've
6 seen to strengthen IP protection in India. I'll
7 have to get you some specific examples from our
8 members of the areas that have yet to be
9 addressed, though.

10 CHAIR LEE: Okay, and we have one more
11 question and it is from PTO.

12 MR. GERK: Thank you. On Indonesia,
13 the Chamber recommends that certain exclusive
14 rights should be clarified to ensure adherence
15 to international treaties. Can the Chamber
16 please provide further information about the
17 exclusive rights referred to in this comment,
18 and provide specific examples of challenges
19 experienced by its members due to the lack of
20 clarification?

21 MS. ANDERSON: Absolutely. You know,
22 that's one where I'm going to have to go back to
23 our members and get you some specifics, but
24 we're happy to follow up in writing.

25 MR. GERK: Thank you.

1 CHAIR LEE: All right, thank you for
2 your testimony.

3 Okay. Next are a couple of testifiers
4 who filed late notices of intent to testify.
5 Next, we have the Business Software Alliance.
6 Is anyone here from BSA? We are running a few
7 minutes ahead of schedule, but, anyone?

8 Well, in that case, I'll make an
9 executive decision to potentially, to go to the
10 next testifier if they are here. Do we have a
11 representative from the Government of Ukraine?
12 Great. So what we will do is we will ask
13 Ukraine to testify first, and then we will go
14 back to the Business Software Alliance. Thank
15 you. Please state your name and organization
16 for the record, and begin your testimony.

17 MR. SAULIAK: My name is Taras Sauliak,
18 First Secretary in the Embassy of Ukraine here
19 in the U.S. First of all, thank you very much,
20 your honor, distinguished members of the Special
21 301 committee, dear guests. Thank you for the
22 opportunity to present Ukraine's position in
23 person today. It's a true honor for me, for my
24 embassy.

25 We respect the Special 301 process.

1 The work of all participating agencies and
2 involved entities and the USTR's role in
3 coordinating these efforts. The comments of the
4 Government of Ukraine were submitted officially,
5 according to the procedure. In my oral remarks,
6 I will highlight just key priorities.

7 Let me also draw your attention to the
8 fact that the Government of Ukraine
9 systematically participates at the 301 hearings
10 and in addition to all required documents, also
11 always present its position in person. We
12 demonstrate our respect, transparency, and
13 readiness to cooperate with the U.S. side.

14 Over the past years, Ukraine has
15 continued systematic works in the IPR protection
16 field, focused on legislative alignment with
17 international best practices and enforcement
18 capacity. These efforts are also carried out in
19 parallel with Ukraine's EU accession process,
20 and do not contradict in any way our obligation
21 to the U.S. partners.

22 Let me focus on a couple of issues.
23 Regarding the collective right management,
24 Ukraine has reached improvement in the
25 operational efficiency of collective management

1 organizations, particularly regarding the amount
2 of remuneration collected, and effectiveness of
3 its distribution among the rights holders.

4 Institutional improvements facilitated by the
5 digitalization and E-governance solutions have
6 led to substantial growth in key indicators.

7 Eight CMOs reported that in 2025, over \$5
8 million was collected, and another 3.5 million
9 distributed and paid to right holders. At the
10 same time, some of the CMOs were partially
11 affected by martial law because of the Russians'
12 war against Ukraine.

13 Regarding combating the use of
14 unlicensed software in the public sectors,
15 Ukraine maintains comprehensive legal framework
16 prohibiting the use of unlicensed software,
17 including by public authorities and government
18 institutions. Compliance is embedded in public
19 procurement rules, digital transformation
20 policies, and cybersecurity safeguards. In the
21 current security environment, the use of
22 licensed software is treated not only as an IP
23 matter, but also as an important element of
24 national security and cyber resilience.

25 Regarding IPR enforcements, Ukraine

1 continues to strengthen enforcements through
2 customs measures, criminal investigations,
3 judicial remedies, and administrative tools,
4 including cooperation with right holders.
5 Particular attention is paid to online piracy
6 and counterfeiting, including through the use of
7 the WIPO ALERT mechanism, interagency
8 cooperation, and the targeted trainings.

9 In 2025, Ukrainian law enforcement
10 dismantled organized schemes involving
11 counterfeit Apple consumer electronics and
12 Pioneer agricultural products, seizing goods
13 worth millions.

14 Ukraine remains firmly committed to
15 effective IP protection and enforcements, even
16 under the extraordinary conditions of Russian
17 ongoing war against our country. We view IP
18 protection as a core element of economic
19 resilience, national security, and investors'
20 confidence. This is particularly relevant in
21 sectors involving miltech and dual-use
22 technologies with regard to our joint ventures
23 with U.S. partners.

24 The U.S.-Ukraine Reconstruction
25 Investment Fund, inspired by President Trump,

1 was launched last year and became operational.
2 Let me express appreciation for the unwavering
3 support provided by the United States to Ukraine
4 IP users, right holders, and Ukraine's IPR
5 protection system in general.

6 Ukraine respectfully asks that its
7 recent progress in the IPR protection be
8 recognized accordingly. We remain ready to
9 continue working closely with USTR, U.S. right
10 holders, and the American businesses to address
11 outstanding issues in a pragmatic and
12 transparent manner. Thank you for your
13 attention.

14 CHAIR LEE: Thank you very much. The
15 first question we have is from the Department of
16 Justice.

17 MR. MERRIAM: Thank you for your
18 testimony. You described the matter of
19 authorized use of software in government systems
20 and the important role that plays. Can you
21 describe how that is administered by the
22 Government of Ukraine? Is there an agency
23 that's responsible for auditing that software?
24 How do you keep track of that?

25 MS. SAULIAK: Thank you for the

1 question. We'll pass this question to our
2 relevant authorities and will provide the
3 relevant reply feedback due to the procedure.

4 CHAIR LEE: Okay. The next question is
5 from the Patent and Trademark Office.

6 MR. GERK: Thank you. You state in
7 your submission that there are 19 collective
8 management organizations, or CMOs, currently
9 operating in Ukraine, and report statistics
10 showing that the amount of remuneration
11 collected and distributed has increased in the
12 last year, despite the CMOs operating on a
13 voluntary basis under current martial law.

14 To what do you attribute the
15 improvements in the collection process? Other
16 stakeholders have raised many issues with
17 Ukraine's CMOs in the past. What changes have
18 been made to improve the transparency and
19 efficiency of Ukraine's system for collective
20 management?

21 MR. SAULIAK: Thank you very much for
22 your question. We will pass this question to
23 our relevant authorities and provide feedback
24 due to the procedure. Thanks.

25 CHAIR LEE: Okay. Thank you. We will

1 have one more question, and it's from USTR.

2 MS. AVERY-PAGE: Thank you. Our final
3 question. Your statement also provides updates
4 on the implementation of the WIPO ALERT system,
5 in which the Ukrainian Intellectual Property
6 Agency recommended 15 pirate websites to be
7 included in the WIPO ALERT database, based on
8 recommendations from stakeholders. Has the
9 Government of Ukraine taken any additional
10 action against any of these websites identified
11 by stakeholders?

12 MR. SAULIAK: Thank you very much for
13 the question. I will pass this question to my
14 relevant authorities and provide the feedback in
15 due order. Thank you very much.

16 CHAIR LEE: Okay, thank you so much for
17 your testimony.

18 Okay. I'm going to go back to the
19 Business Software Alliance and see if there is
20 any representative. If not, we will wait a few
21 more minutes to see if someone shows up. So
22 we'll wait about, like, four or five minutes.
23 So sit tight. If they're not here, then we will
24 just go to closing remarks.

25 (Whereupon, the above-entitled matter

1 went off the record at 2:08 p.m. and resumed at
2 2:12 p.m.)

3 CHAIR LEE: Okay. It's 2:12 p.m. and I
4 am going to make a last call for the Business
5 Software Alliance. Any representative?

6 Okay. So I guess the Business Software
7 Alliance is a no-show, and we will move to
8 closing remarks, as we have concluded the
9 testimony part of the hearing.

10 So on behalf of the Special 301
11 subcommittee, we want to thank all the
12 participants for taking time out of your day to
13 have this exchange with us today. We appreciate
14 the comprehensive research, thought, and
15 problem-solving efforts that went into your
16 written submissions and oral testimony.

17 The Special 301 docket will reopen this
18 afternoon and will remain open until 11:59 p.m.
19 Eastern Time on February 28th for post-hearing
20 briefs by interested parties that testified
21 today. And these post-hearing briefs are
22 optional, but if you're interested, please
23 follow the instructions on the agenda or in the
24 original Federal Register notice, which is at
25 regulations.gov, with the docket number USTR-

1 2025-2043.

2 I will also note that a transcript of
3 today's hearing will be available at USTR.gov,
4 and we will do our best to get that posted
5 within the next couple of weeks or so. So thank
6 you again to everyone, including my colleagues
7 on the panel, and to those who testified today
8 for your contributions, your time, and your
9 attention. And finally, a special thanks to
10 personnel at USTR who took care of today's
11 logistics and setup. And with that, ladies and
12 gentlemen, I want to call the 2026 Special 301
13 hearing to a close. Thank you.

14 (Whereupon, the above-entitled matter
15 went off the record at 2:14 p.m.)
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C E R T I F I C A T E

This is to certify that the foregoing transcript was duly recorded and accurately transcribed under my direction; further, that said transcript is a true and accurate record of the proceedings; and that I am neither counsel for, related to, nor employed by any of the parties to this action in which this matter was taken; and further that I am not a relative nor an employee of any of the parties nor counsel employed by the parties, and I am not financially or otherwise interested in the outcome of the action.

Eric Mollen

Eric Mollen

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